

Comment on “Copyrights and Creativity: Evidence from Italian Opera in the Napoleonic Age”

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Abstract

In their 2020 *Journal of Political Economy* article, Giorcelli and Moser study the Napoleonic invasion of Italy to find evidence of the effects of copyright laws on opera production. I document internal inconsistencies in the replication package and differences with the econometric procedures described in the paper. Further, I use publicly accessible data on opera premieres to replicate their findings, failing to recover their main results. Finally, I discuss the core elements of the historical setting studied by the authors, finding that the core tenets of the identification strategy are not supported by the historical literature, nor by primary sources.

1 Introduction

In their 2020 *Journal of Political Economy* article “Copyrights and Creativity: Evidence from Italian Opera in the Napoleonic Age”, Giorcelli and Moser (2020), henceforth GM2020, investigate the causal effects of copyright laws on creative output, using Italian opera production and an exogenous change in copyright law in parts of Italy. The paper finds that opera quantity and quality increase post-copyright introduction. They find no negative effect on opera production in untreated states, and a positive effect on Italian émigré composers returning to Italy. Their results suggest that copyright protection increases both the quantity and quality of innovation.

I fail to replicate some of the core findings using the replication package provided, and I document both internal inconsistencies within the datasets included in the replication package and with publicly available datasets. When attempting to reconstruct the main variables on opera quality using the source cited in GM2020, I fail to obtain the same results, and I document that the dataset on an alternate metric of opera quality GM2020 employ is perfectly correlated with their main variable on opera quantity.

Moreover, the analysis in GM2020 rests on three claims about the historical setting which underpin the identification strategy: (1) In 1801, the French copyright law of 1793 was extended to two regions of Italy, Lombardy and Venetia. (2) The other regions of Italy, which eventually also came under Napoleonic control, did not introduce similar laws. (3) The copyright laws enacted in Lombardy and Venetia remained intact following the Austrian Empire gaining control over the territories in 1815. My analysis of the historical evidence does not support these core tenets of the identification strategy, and I fail to find some of the primary sources GM2020 adduce to support their interpretation.

2 GM2020 Replication Package

The paper’s replication package, available online, provides datasets and Stata codes to replicate their results. Their replication package spans 22 datasets, 5 of which include the number of operas produced across different aggregations and used in the main paper. Each exhibit has a separate file, and often a separate, already cleaned dataset. The datasets published are post-collection; they do not show the scripts needed to recreate them from the raw data. The raw opera data are not included in the package, and the authors refused to share them and the intermediate scripts upon request. Operas are not named, only tallied, and the authors assign a `composer_id` to each composer without identifying them.

Overall, GM2020 list five books used to compile their dataset. These are: Carlo Dassori’s *Opere e Operisti, Dizionario Lirico* (1903), Loewenberg’s (1978) *Annals of Opera*, Corrado Ambiveri’s (1998)

Opere e Operisti Minori dell'Ottocento Italiano, New Grove Dictionary of Music and Musicians (2001), Treccani's Enciclopedia Italiana di scienze, lettere ed arti (2001). The authors treat operas included in Loewenberg (1978) as of higher quality; Loewenberg includes only notable opera premieres. Loewenberg is also the most restrictive source of their sample “133 of 1,353 operas in Dassori (1903) and none of 71 operas in Ambiveri (1998) are included in Loewenberg (1978)” (GM2020, p. 16). The authors report 705 Italian-born composers who premiere 2598 operas between 1770 and 1900. For the period 1781 to 1820, they report 677 operas by 192 composers. The number of new operas is strictly positive for every state-year observation.

2.1 Data Issues & Inconsistencies

The replication package of GM2020 contains several dataset files to create tables and figures to support their analysis and two main conclusions: the introduction of copyrights increased the quantity and quality of operas produced. Table 1 shows a summary of the total implied opera count in each of the datasets. These are used to support the first conclusion. In the paper, GM2020 report 677 operas; this does not appear in any datasets in the replication package.

Table 1: Summary of Total Opera Production by Dataset

Dataset	Variable	Total	Used in Paper
operas_1781_1820	operas	657	Tables 1,3,4
operas_copyright_total	total_operas	731.6	Fig. 2
composer_level	comp_operas	704	Table 5
city_level	operas_city	617	Table 8

For *operas_1781_1820*, *composer_level*, and *city_level*, I sum the variable *operas*. For *operas_copyright_total*, which reports average operas by treatment status, I first multiply by the number of states in each treatment group.

GM2020 classify a subset of their sample as operas of higher quality. Namely, they treat operas included in Alfred Loewenberg’s book *Annals of Opera*, operas available on Amazon in 2014, and operas later performed in the New York Metropolitan Opera as proxies for higher quality operas. There is a mismatch in the number of operas classified into each of these categories, as shown in Table 2 below. All of the replication package files report different counts.

Table 2: Summary of Higher Quality Opera Production by Proxy and Dataset

	Paper	Dataset		
		operas_1781-1820	composer_level	city_level
Annals	62	58	80	87
Amazon	42	39	57	52
Met	55	55	57	71

These discrepancies suggest that the clean datasets do not share a single raw source, or that the cleaning process was not correctly or consistently implemented. On both metrics — opera quantity and opera quality — it is impossible for all the results and tables in GM2020 to be accurate, as the datasets used to derive these results are inconsistent with each other.

2.1.1 Composer Data

GM2020 find that opera production increases overall, and that production per composer goes up. They use the *composer_level_data.dta* to support their claims. The dataset in the GM2020 replication package references 192 Italian-born composers, as opposed to the 264 I find in the ON database. The composers in their replication package are not named, but rather have a unique id number. These range from 1–210, with 18 IDs missing. 73% (141/192) of composers only compose a single opera. There is a column with individual compositions per state per year for each composer *operas_comp*, and a column with a fixed value per composer *tot_operas*. There are 11 composers who have more operas listed than reported as their overall opera compositions; the sum of *operas_comp* is greater than *tot_operas*. They composed 47 more operas. This discrepancy is precisely the difference between *operas_1781-1820* and *composer_level_data*.

Further, *composer_id = 13* is active in years 1781 through 1804, before abruptly producing an extra 9 operas in 1813, all in Lombardy. In GM2020’s main opera count however, Lombardy only produced 6 operas that year. Similarly, composer 8 composed 8 operas in Lombardy in 1814, composer 9 composed 9 operas in Lombardy in 1815, and composer 3 composed 8 operas in Lombardy in 1812. For the above years, each composer is the only active composer in Lombardy. This is not reflected in the alternative data on opera premieres I introduce in section 4.1, where multiple composers are active in the same state each year, and where the most productive composer in a single year (Domenico Cimarosa in 1781, 1782, 1783, 1784) composed six operas. Overall, there are 8 state-year-composer outputs that exceed six operas. These are all in Lombardy, and post-treatment. Further, the data for Venetia also exhibit inconsistencies. Venetia in 1803 has composers creating 11 operas, while their

main dataset, *operas_1781-1820.dta* reports 8. Table 3 displays how the composer dataset departs from their main dataset. ¹

Table 3: Differences across Composer and Main Datasets: Operas Premiered

State	1781–1800			1801–1820		
	main	composer	Δ	main	composer	Δ
Lombardy and Venetia	63	62	-1	182	210	28
Other States	162	172	10	250	260	10

‘main’ refers to the number of operas in *operas_1781-1820.dta* of GM2020.

‘composer’ refers to the number of operas in *composer_level.dta* of GM2020.

Returning Migrant Composers

GM2020 claim that the introduction of copyrights induced Italian composers who were working in France and Austria to return to Italy — specifically Lombardy and Venetia. Two datasets, *composer_level.data* and *returning_composers*, contain the data on the number of return migrant composers. The first is used in regressions showing that return composers increased opera quantity and quality in treated states following the introduction of copyrights. The second is used in figure 5 to show that migrant composers came to Lombardy and Venetia after the introduction of copyrights law. While the former dataset reports 34 returning composers, the latter records 120.

2.1.2 Repeat Performances

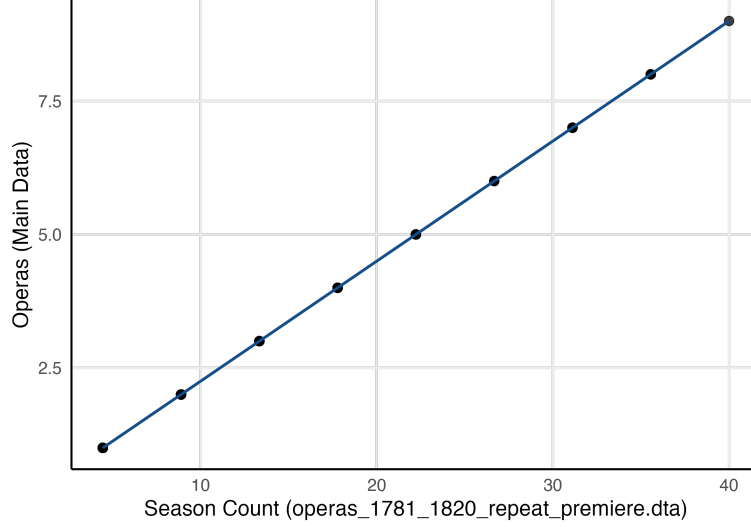
To show that the introduction of copyrights increased operas that were contemporary successes, GM2020 show that operas produced in states introducing copyright laws were repeated more. GM2020 have a separate dataset, *operas_1781-1820-repeat_premiere.dta*, with the variable *season_count*, which counts how many times the average new opera premiered in that state-year was performed in that season. It is not clear from the text what the source of this dataset is, and I could not find any dataset which reports something similar. ²

The values reported for this variable represent an affine transformation of the *operas* variable from *operas_1781-1820* dataset. The figure below shows that the correlation between *season_count* and the number of new operas premiered as shown in the *operas* variable is perfect ($R^2 = 1$). The intercept is 0 and the gradient is $4.444445 \left(\frac{1}{0.225}\right)$. There are 320 observations, and nine distinct season counts.

¹The authors refused to share the raw data upon request, and as such I cannot take a stance on the source of the discrepancies.

²The authors refused to share or name their source for this variable upon request.

Figure 1: Scatter Plot of Number of New Operas vs. how many times each Opera is performed in GM2020



Aside from the issue stemming from the perfect correlation, the values reported for *season_count* do not seem plausible; they are all multiples of 4.444445. For example, in 1781 there was one opera premiered in Modena, which they report was staged 4.444445 times in its first year. In general, for 199 out of the 320 state-year observations, GM2020 report a single new opera being produced. For each of those observations, GM2020 imply that the single opera premiered in this state-year was repeated 4.444445 in that year. For the state-year observations with two premieres, the total number of performances in the first year is always 8.88889.

2.1.3 Treated States without their Capitals

The authors perform a robustness check to exclude Milan and Venice to alleviate concerns that these two major cities are driving the results in their regressions in their main dataset. The results are shown in Table A6. To perform this check, the authors use the *operas_no_milan* and *operas_novenice* variables in the *operas.1781.1820* dataset. In a separate section, using a different dataset, they investigate the effects of copyright introduction using cities as their unit of observation. The city-level data are in the *city_level* dataset in their replication package. Aggregating all the operas composed in each state's cities should match the *operas.1781.1820* data; it does not, as shown in Table 1. Further, the *operas.1781.1820* variables *operas_no_milan* and *operas_novenice* do not match what the *city_level* dataset reports. Specifically, the *city_level* dataset attributes more operas to Venice and Milan relative to *operas.1781.1820*. Consequently, compared to a specification using the *city_level*

dataset, the coefficients reported by GM2020 appear biased upward, implying an exaggerated treatment effect.

I replicate Table A6 using the number of operas excluding Milan and Venice from the *city_level* dataset. Excluding Milan (columns 3–4) produces statistically insignificant results. Panel A of Table 4 shows the results presented in GM2020; Panel B shows the same specification using *city_level_data.dta* from the GM2020 dataset.

Table 4: GM2020 Table A6. Dependent Variable is New Operas per State and Year, 1781–1820

Panel A: Results shown in GM2020 Paper, using operas_1781_1820.dta								
	(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)
	OLS	Poisson	OLS	Poisson	OLS	Poisson	OLS	Poisson
Lombardy & Venetia * post	2.078*** (0.313)	2.120*** (0.226)	1.048*** (0.358)	0.747*** (0.307)	0.925*** (0.244)	1.596*** (0.277)	3.336*** (0.373)	1.287*** (0.313)
State FE	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
Year FE	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
Excluding Venice	Yes	Yes	No	No	No	No	No	No
Excluding Milan	No	No	Yes	Yes	No	No	No	No
Excluding Venice and Milan	No	No	No	No	Yes	Yes	No	No
Excluding Venetia	No	No	No	No	No	No	Yes	Yes
Panel B: Same Specification, using <i>city_level_data.dta</i> from GM2020 Replication Package								
	(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)
	OLS	Poisson	OLS	Poisson	OLS	Poisson	OLS	Poisson
Lombardy & Venetia * post	1.654*** (0.340)	0.915*** (0.156)	0.652 (0.357)	0.360 (0.193)	0.106 (0.234)	0.646* (0.276)	3.336*** (0.373)	1.156*** (0.103)
State FE	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
Year FE	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
Excluding Venice	Yes	Yes	No	No	No	No	No	No
Excluding Milan	No	No	Yes	Yes	No	No	No	No
Excluding Venice and Milan	No	No	No	No	Yes	Yes	No	No
Excluding Venetia	No	No	No	No	No	No	Yes	Yes

Standard errors in parentheses

* p<0.05, ** p<0.01, *** p<0.001

3 Econometric Issues

In this section, I examine the econometric implementation used in GM2020. Overall, I find inconsistencies between the analyses GM2020 claims to perform, and what the replication package actually implements.

3.1 Standard Errors

The main specification of the paper runs pooled OLS with dummies for state and year; their smallest unit of observation is the state-year, and they do not cluster errors at a coarser level. For robustness, the authors claim their results remain significant when employing two alternate specifications; this is not the case. Specifically, the authors claim their results are robust to clustering standard errors at the state level, and to implementing the procedure specified in Bertrand et al. (2004).

Footnote 24 states:

“Even though our results are robust to clustering at both the state and state-year levels, our preferred specification includes fixed effects for states and for years, with clustering at the level of states and years.”

The authors do not report the table of their specifications clustered at the state level. I cluster their specification and show the results below. The results fail to be significant for all 5 specifications.

3

Table 5: Table 3 with Errors Clustered at State Level

	(1)	(2)	(3)	(4)	(5)
	OLS	OLS	OLS	OLS	Poisson
L & V $\times$ Post	2.201 (0.991)	2.147 (0.989)	2.137 (1.223)	2.200 (0.991)	1.287 (0.783)
State FE	Yes	No	Yes	Yes	Yes
Year FE	Yes	Yes	Yes	Yes	Yes
Linear pretrend for L&V	No	No	Yes	No	No
State-specific linear pretrend	No	No	No	Yes	No

Standard errors in parentheses

* $p < 0.05$, ** $p < 0.01$, *** $p < 0.001$

Secondly, the replication package does not implement the robustness procedure described in the paper, as proposed in Bertrand et al. (2004). The authors acknowledge the criticism regarding their use of non-clustered errors, and state they implement the proposal in appendix A3. Page 19 reads:

“Robustness checks estimate standard errors, collapsing years for the pre- and post- copyright periods (table A3, implementing Bertrand et al. 2004, 14).”

³With 8 clusters, and hence 7 degrees of freedom, significance at 5% is achieved at $t = 2.365$.

A proposal in Bertrand et al. (2004) for adjusting standard errors when N is small is to collapse the data, aggregating to 2 time periods (pre- and post- treatment). The authors present the results in Table A3, and claim they collapsed the data. They do not do this; the replication package shows they implement clustering errors by $state \times treatment_period$. In Table 6, I present a correct version of table A3, consistent with the proposal of Bertrand et al. (2004). Since there are only 2 time periods, I only replicate columns 1 and 2; I cannot include linear pre-trends which GM2020 include in their specifications shown in columns 3 and 4.

Table 6: Collapsing the pre- and post-period observations with clustering at the state level

(a) GM2020 Original Specification			(b) GM2020 Corrected Specification		
	(1)	(2)		(1)	(2)
	OLS	OLS		OLS	OLS
Lombardy & Venetia $\times$ post	2.201** (0.677)	2.147* (0.853)	Lombardy & Venetia $\times$ post	2.061 (1.305)	0.892 (1.062)
Lombardy & Venetia		0.320 (0.488)	Lombardy & Venetia		1.575** (0.426)
State FE	Yes	No	State FE	Yes	No
Year FE	Yes	Yes	Year FE	Yes	Yes
Standard errors in parentheses			Standard errors in parentheses		
* p<0.05, ** p<0.01, *** p<0.001			* p<0.05, ** p<0.01, *** p<0.001		

Overall, GM2020 do not correctly implement the econometric specifications that are described as robustness checks for their main specifications. Adjusting for the errors results in non-significant results.

3.2 Composer Level Regressions

Table 5 in GM2020 reports the coefficients of composer-level regressions— the effect of copyright introduction on individual composers' opera output. Panels B & C, respectively, report the regressions excluding the top 10% and 20% of composers. The replication package shows that to do this, the authors exclude all composers who have composed more than 30 and 20 operas, respectively. However, the threshold for the most productive 10% and 20% of composers is 7 and 3 operas, respectively. Just three composers wrote more than 30 operas, and just eight more than 20. The overwhelming majority (141/192) composed just a single opera. Adjusting for the correct opera count, all the coefficients of Table 5 Panel B fail to be significant at the 10% level. There is no variation, as there are no composers

who have composed fewer than 4 operas in the GM2020 dataset and hence none of the regressions of Panel C return results.

Table 7: Panels B & C of GM2020 Table 5

	(1)	(2)	(3)	(4)	(5)	(6)	(7)
	All operas	Historically popular operas in Loewenberg (1978)		Operas performed at the Metropolitan 1900–2014		Durable operas on Amazon today	
	Count	Count	Share	Count	Share	Count	Share
GM2020 Original Specification							
<i>Panel B. Excluding Top 10%</i>							
L&V* post	1.703*** (0.496)	0.793*** (0.240)	0.201** (0.072)	0.596** (0.218)	0.144* (0.073)	0.429* (0.169)	0.145 (0.090)
<i>Panel C. Excluding Top 20%</i>							
L&V* post	1.317 (0.757)	0.399 (0.285)	0.132 (0.131)	0.278 (0.273)	0.066 (0.119)	0.387 (0.241)	0.181 (0.109)
GM2020 Corrected Specification							
<i>Panel B. Excluding Top 10%</i>							
L&V* post	0.150 (2.313)	0.037 (0.263)	0.201 (0.065)	0.350 (0.370)	0.238 (0.213)	-0.119 (0.264)	-0.119 (0.264)
<i>Panel C. Excluding Top 20%</i>							
L&V* post	0.0 (.)	0.0 (.)	0.0 (.)	0.0 (.)	0.0 (.)	0.0 (.)	0.0 (.)
Composer FE	Yes	Yes	Yes	Yes	Yes	Yes	Yes
Year FE	Yes	Yes	Yes	Yes	Yes	Yes	Yes
State FE	Yes	Yes	Yes	Yes	Yes	Yes	Yes

Notes: Standard errors in parentheses.

* $p < 0.05$, ** $p < 0.01$, *** $p < 0.001$.

3.3 Pre-trends

To deal with issues relating to different pre-trends across the states, GM2020 control for them in some specifications. In the *operas_1781 – 1820.dta* file, there are eight variables meant to account for this. For each state s , the variable *pre – trend_s* takes the values $1, 2, \dots, 20$ for the years 1781–1800, and 0 thereafter. Thus, within each state, *pre – trend_s* increases linearly during the pre-treatment period and then drops to zero at the start of the treatment period.

This construction of the pre-trend variables is econometrically invalid. Each value for the variable *pre – trend_s* increases by one each year until 1800 before collapsing to zero in 1801, introducing a discontinuity in the regressor at the treatment threshold. Consequently, *pre – trend_s* mechanically captures part of the treatment break. The regression therefore cannot separately identify a true

treatment effect from the artificial jump embedded in the *pre – trend_s* variable.

4 Replication

I attempt to replicate the paper’s main results and figures on opera quantity using the “Opening Night! Opera & Oratorio Premieres” (henceforth ON) data and on opera quality by recreating their data on notable opera performances as identified by Loewenberg (1978); I fail to get similar conclusions. Specifically, I investigate the main claims that the number of operas premiered increases in Lombardy and Venetia following the claimed introduction of copyrights in 1801, that Lombardy and Venetia were on similar pre-trends to the remainder of the states, that the results are robust to excluding Milan and Venice, and that opera quality increases in Lombardy and Venetia following the introduction of copyrights in 1801.

4.1 Opening Night! Premieres Databases

The main dataset I use to replicate their findings is the ON dataset, which is based on the 2003 book “From Don to Giovanni: Opera and Oratorio Citation Database”, created by Richard Parrillo. It is curated by Stanford University Libraries, and created in 2013; it was available before the paper’s first draft in 2014, and the authors claim to use the dataset for their section 8 on other musical compositions, not for the main analysis on opera quality or quantity. The data can be accessed using the Julia package *ONOperas.jl*. I choose the ON database because the authors had access to it, as they cite it as a source for their data on other musical compositions, and because of the accessibility and ease of scraping. The data I compile using the ON database has 1876 operas by 264 distinct Italian-born composers. For 46 state-year observations, there are no opera premieres by Italian-born composers in the Italian cities GM2020 investigate. I attach a full list in Appendix B.1.

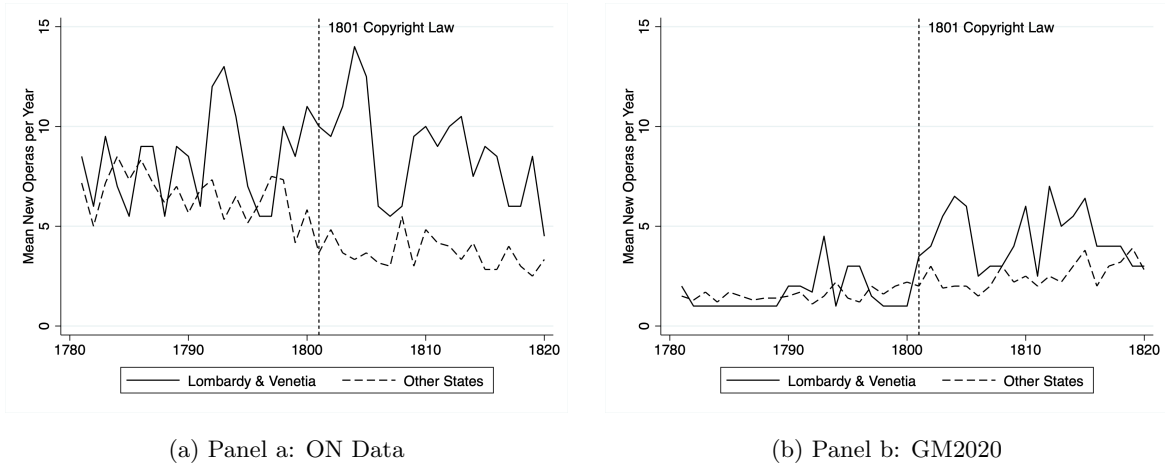
GM2020 use the ON database to create the variable *opening_night* in the dataset *musical_compositions_1781_1820.dta*. The variable is explained in Appendix table A18: “The dependent variables Opening Night!, symphonies, and songs per state and year measures the number of new operettas, oratorios, and serenades (excluding operas) in state *i* and year *t* between 1781 and 1820.” The introduction of operettas as a genre, however, did not occur until Jacques Offenbach staged the first operettas in Paris in the 1850s (Encyclopædia Britannica 2024). Further, 149 of the 320 observations of the *opening_night* variable contain fractions. Overall, summing over all the states and years, we get 729.5 operettas in Italy from 1781–1820, when operettas had yet to be invented. The ON dataset does not identify any operettas in that time period. Additionally, while GM2020 identify 484 oratorios, ON only includes 164, and the source of the 2600 serenades is not clear.

I find that the difference in operas cannot be attributed solely to differences in sources. Using OCR, I scan and show that the data in Loewenberg does not match their *operas_annals* variable, whereas it should.

4.2 Main Specification

Below I replicate Figure 2 from GM2020. I observe that the treatment group and the control group have different pre-trends. I document that opera production starts rapidly increasing across the treated group at 1797, coinciding with the year Napoleon signed peace with Austria in Campo Formio and Milan was placed under Napoleonic control.

Figure 2: New Operas per State and Year in Italy, 1781–1820.



Moreover, the claim in GM2020 that opera output does not fall in the untreated states is not supported by the ON data. Below, I show the replication of GM2020 main specification results, table 3.

Table 8: Replication of Main Specification (Table 3 of GM2020) with ON Data

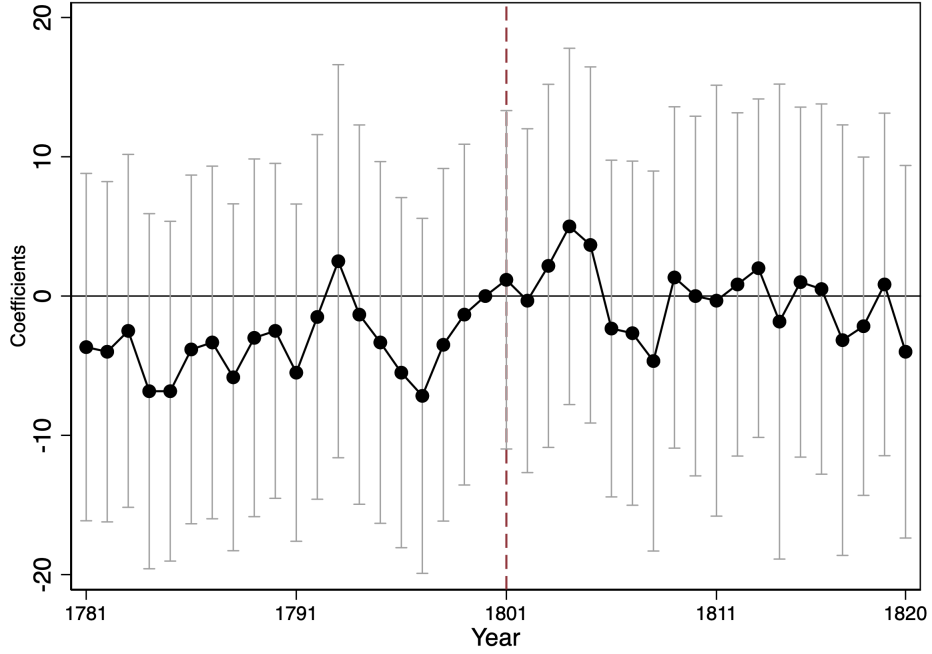
	OLS (1–4)				Poisson (5)
	(1)	(2)	(3)	(4)	(5)
Lombardy & Venetia $\times$ post	3.162*** (0.926)	2.828* (1.309)	2.023 (1.616)	1.774 (1.661)	3.774*** (0.689)
Lombardy & Venetia		2.205 (1.065)			
State FE	Yes	No	Yes	Yes	Yes
Year FE	Yes	Yes	Yes	Yes	Yes
Linear pre-trend for L&V	No	No	Yes	No	No
State-specific linear pre-trend	No	No	No	Yes	No

Notes: Robust standard errors in parentheses.

*** $p < 0.001$, ** $p < 0.01$, * $p < 0.05$

These are the same specifications that GM2020 estimate. Specifications 3 and 4, which include pretrends and are also reported in GM2020, do not produce significant coefficients. An event study plot shows that pre-trends are driving the significance of specifications 1, 2, 5.

Figure 3: OLS Annual Estimates on Opera Production



Notes: The figure plots annual OLS estimates of the effect of copyright adoption in Lombardy and Venetia on the number of new operas premiered per state-year. Coefficients represent β_r from the specification $operas_{it} = \beta_0 + \beta_r(\text{Lombardy} \& \text{Venetia}_i \times \text{year}_r) + \phi_i + \delta_r + \varepsilon_{it}$, where 1800 is the reference year. State fixed effects (ϕ_i) account for time-invariant differences across states, and year fixed effects (δ_r) capture common shocks over time. The graph displays point estimates and 95% confidence intervals, using robust standard errors.

The ON dataset shows a centralization of opera production around Milan and Venice post 1801, whereas GM2020 imply a dispersion of opera production. Using the ON dataset, I find 52 operas in Lombardy but not Milan, whereas GM2020 report 64. For example, in Lombardy in 1804, I could only find one opera premiered outside of Milan — *Nino* by Orlandi in Brescia— while GM2020 reports 5 new operas in Lombardy. In 1811–1814, there were no new operas written by Italian-born composers in Venetia excluding Venice (only *Adriano in Siria* by Portugal-born Marcos Portugal was premiered in Venetia outside of Venice (Padua, 1813)), yet GM2020 report 7 new operas. Table 9 illustrates the discrepancy.

Table 9: Operas produced in Lombardy and Venetia excluding their main cities

Group	Lombardy		Venetia	
	Pre-1801	Post-1801	Pre-1801	Post-1801
GM2020	14	50	8	40
ON	29	19	43	33

4.3 Loewenberg and Noteworthy Operas

I investigate one of their data sources, and find the data in the replication package presents a significant discrepancy with the original source material. Specifically, I use Loewenberg (1978), as this is the most easily accessible and is the sole source of their variable *operas_annals* in the dataset *operas_1781-1820*. This is used in the specifications of Table 4 of GM2020 to support the claim that copyrights introduction improved not only quantity, but also quality.

To recreate the correct Loewenberg data, I perform OCR on 147 pages and filter for performances in cities in Italy and by Italian-born Composers. I manually check the OCR output. While GM2020 report 58 operas in the annals, I find 130 operas. The opera counts do not match for 37 of the 40 years; they only match for 1797, 1798, and 1800.

The discrepancies between the original data in Loewenberg and the dataset in GM2020 are skewed towards Lombardy and Venetia in the post-treatment period: in GM2020, 42% (24/58) of notable operas were premiered post-treatment in these regions, compared with 30% (39/130) in Loewenberg.

I show the discrepancy between the two datasets across the two periods and treatment groups. I show the full list of operas in Loewenberg in Appendix B. In their data, for the first 8 years, from 1781 until 1788, they report no noteworthy operas. However, Loewenberg includes 36 notable premieres by Italian-born composers in Italy during this time period. Overall, Loewenberg lists 69 operas in 51 state-year observations for which GM2020 report 0 operas. In certain instances, Loewenberg reports more notable operas than GM2020 report overall, such as the observation of Venice in 1783, where GM2020 report 0 notable operas and 1 opera overall, while Loewenberg lists two notable premieres — *Lo Sposo di tre*, *Marito di Nessuna* by Cherubini and *La Villanella Rapita* by Bianchi. Overall, Loewenberg lists 69 operas in 51 state-year observations for which GM2020 report 0, I include a full list of the operas in Appendix B.2. The discrepancy also goes in the other direction — GM2020 occasionally report more operas than Loewenberg lists. For example, GM2020 report Lombardy having 2 noteworthy premieres in 1814 while Loewenberg only lists one — *Il Turco in Italia* by Rossini.

Table 10: Loewenberg Operas: GM2020 vs Loewenberg (1978)

State	1781–1800			1801–1820		
	GM2020	Loewenberg	Δ	GM2020	Loewenberg	Δ
Lombardy–Venetia	5	28	23	24	39	15
Other states	10	39	29	19	24	5

Moreover, given Loewenberg (1978) only contains noteworthy operas, it is unclear how the book contains more operas than the authors report overall. Noteworthy performances as reported by Loewenberg are a subset of the overall opera premieres, so GM2020 should report weakly more operas

in their data than in Loewenberg (1978); this is not the case.

Below I show how the different datasets compute the main specification relating to opera quality; columns 1 and 2 from Table 4.

Table 11: Table 4 of GM2020; GM2020 Data and Loewenberg (1978) Dataset

	GM2020		Loewenberg		
	Count (1)	Share (2)	Count (3)	Share GM2020 (4)	Share ON (5)
LV $\times$ Post	0.407** (0.152)	0.104** (0.047)	0.372 (0.213)	-0.192 (0.106)	0.024 (0.104)
State fixed effects	Yes	Yes	Yes	Yes	Yes
Year fixed effects	Yes	Yes	Yes	Yes	Yes

Notes: Specifications 1–2 show the results using the Loewenberg counts as depicted in GM2020. Specifications 3–5 use the corrected Loewenberg counts. For specification (4), I used GM2020 data for total new opera production. For specification (5), I used ON data for total new productions.

* $p < 0.05$, ** $p < 0.01$, *** $p < 0.001$.

Adjusting for the correct Loewenberg count revises the point estimate downward and the standard error upward. While the coefficients GM2020 report are significant at the 1% level, none of the coefficients of the specifications using the data derived directly from Loewenberg are significant.

4.4 Other Musical Compositions

In Section 8.B of GM2020, the authors test whether the introduction of copyrights impacted the production of other musical compositions. Overall, I fail to find the data the authors report. Specifically, GM2020 claim to use ON as a source for operettas, serenades and oratorio premieres (Giorcelli & Moser, 2020, p.43.) — and they exclude opera premieres. The results are shown in table A18 of GM2020, the cleaned dataset used is *musical_compositions_1781_1820* (specifically the variable *opening_night*, which spans from 1781 to 1820, and they find that copyright introduction increased the production of these types of musical compositions; GM2020 report that output in Lombardy and Venetia increased by 1.2 new operettas, oratorios, and serenades relative to the control group. Through their variable *opening_night*, GM2020 report that ON includes 729.5 non-opera musical composition premieres between 1781 and 1820.

The origin of the data they use is unclear. In the current version of the data, ON includes 169 oratorios premiered in Italy between 1781 and 1820. ON does not include any serenades. Operettas as

a genre broadly did not exist until the late 1840s, more than 25 years after the last unit of observation.⁴

Further, between 1781 and 1820, the GM2020 replication package implies a count of 729.5 musical compositions over 320 state-year observations. 149 of these observations contain non-integer counts. It is not clear what this means or how this could occur.

5 Identification Strategy & Setting

The paper exploits policy variation in the Napoleonic Wars in Italy to find variation in copyright protection. The paper’s identification strategy rests on three points. First, that only Lombardy and Venetia introduced copyright laws in 1801. Second, that they were the only states to have copyrights laws until at least 1820. Third, that the copyright laws passed under Napoleonic rule remained after the downfall of Napoleon and the subsequent Congress of Vienna in 1815. I investigate the historical setting, and through examining primary and secondary sources, find that these three aspects of the historical setting do not hold. I also critically assess the validity of the sources GM2020 cite.

5.1 Copyright Laws in Napoleonic Italy (ante 1815)

The authors divide Italy into eight states following the 1815 borders drawn at the Congress of Vienna. These are: the Kingdom of Lombardy (Lombardy), Venetia, the Kingdom of Sardinia (Sardinia), the Duchy of Parma and Piacenza (Parma), the Duchy of Modena and Reggio (Modena), the Grand Duchy of Tuscany (Tuscany), the Papal States, and the Kingdom of the Two Sicilies (Two Sicilies). All of these states, either in their entirety or partially, enforced copyrights by 1811.

The Sardinian territories in mainland Italy were annexed directly by France in 1802 followed by former Duchy of Parma and Piacenza in 1808, the Grand Duchy of Tuscany in 1808, and the remainder of the Papal States in 1809. These territories were ruled just like any other French territories, and as such domestic French law would apply. This would extend to the copyrights law of 1793. I find an extract of the 1813 *Raccolta* of the *Département du Pô* (Appendix A.5) where there is direct reference to the French 1793 copyrights law.⁵

Southern Italy, with the exclusion of the island of Sicily, was organized into the French-controlled Kingdom of Naples. In 1811, Decree 1134 was introduced (Appendix A.3). It introduces copyright protection in the same way as the law GM2020 study, and explicitly includes theatrical performances, such as operas.

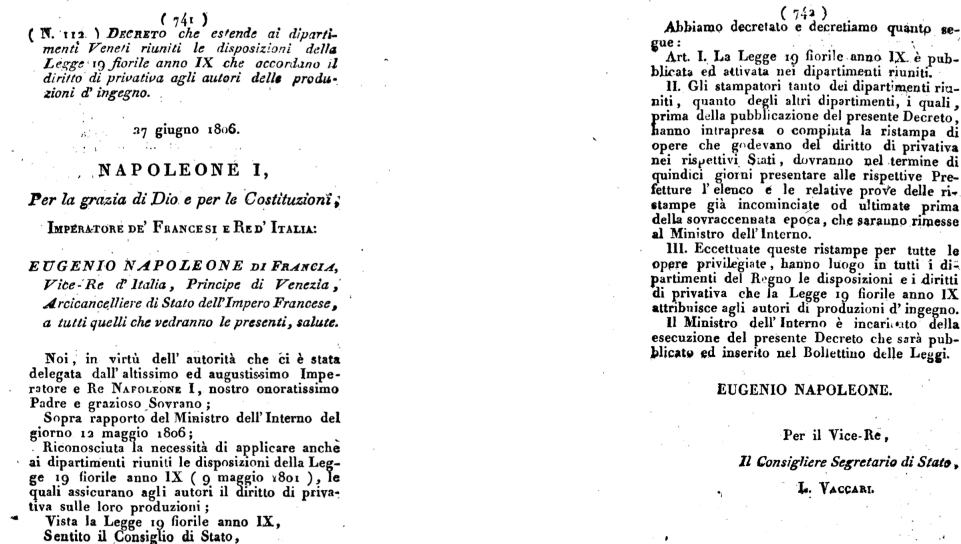
⁴*L’errore fortunato* by Nencini is classified as an operetta in ON. It is the only such observation in Italy from 1781–1820, and Treccani (2013) classifies it as a farsetta.

⁵Specifically, the prefect notes that there are reports that some mayors were not enforcing the copyright law, and instructs them to do so immediately.

In 1801, as GM2020 report, the Cisalpine Republic passes *Legge 19 fiorile*, introducing copyright law to the Republic, based on the French 1793 on copyrights. While GM2020 classify Lombardy and Venetia as territories belonging to the Cisalpine Republic, the Cisalpine Republic included Modena, Lombardy, part of the Papal States, and former Venetian territories west of the river Adige (Encyclopædia Britannica, 1998).⁶

I find no evidence that Cisalpine laws applied to Venice prior to the 1805 Treaty of Pressburg. To the contrary, any publishing laws would likely pass through the censorship office, of which Carpani is appointed to head by the Austrian Emperor until 1805 (Syrový, 2023). He would deal with all publishing matters, including copyright, making it very improbable that French rather than Austrian laws were followed. In 1805, with the treaty of Pressburg, Venice falls under Napoleonic control. The case of Sonzogno and Graziosi (discussed in more detail in Appendix A.1) illustrates that in the spring of 1806, there were no *de jure* or *de facto* copyright laws in Venetia. Lastly, Decree 112 in the 1806 bulletin of laws passed in the Italian Kingdom (the successor state of the Cisalpine Republic) explicitly states that it is introducing *Legge 19 fiorile* to the Venetian territories that have just been absorbed.⁷

Figure 4: Extract of Decree 112 from the Bulletin of Laws passed in the Kingdom of Italy (1806), extending copyright protections to Venice.



Review

⁶Venice lies east of the river Adige, and is explicitly under Austrian control, under the treaties of Campoformio (1797) and Luneville (1801).

⁷I attach a more complete extract in Appendix A.

Overall, the entirety of the Italian mainland had copyright laws by 1811. Table 12 summarizes the discrepancy between the GM2020 interpretation of history and my own.

Table 12: Comparison of Treatment by State

State	Treatment		Source
	GM2020	My Reading	
Lombardy	1801	1801	1801 Raccolta
Venetia	1801	1806	1806 Bolletino
Kingdom of Sardinia	>1820	1802	Broers (2005) & Baccini (2019)
Duchy of Parma and Piacenza	>1820	1808	Broers (2005) & Baccini (2019)
Duchy of Modena and Reggio	>1820	1801	1801 Raccolta
Grand Duchy of Tuscany	>1820	1808	Broers (2005) & Baccini (2019)
Papal States	>1820	1801 / 1809	1801 Raccolta / Broers (2005) & Baccini (2019)
Kingdom of the Two Sicilies	>1820	1811	1811 Bulletino

Notes: Treatment denotes introduction of copyright protections. The 1801 raccolta refers to *Raccolta delle leggi, proclami, ordini ed avvisi pubblicati in Milano* (Milano, 1801), the *Raccolta di leggi, decreti, proclami, manifesti ec. Pubblicati dalle autorità costituite* (Torino, 1813), the 1806 Bolletino refers to *Bolletino Delle Leggi del Regno d'Italia* (Milano, 1806), the 1811 Bulletino refers to *Bulletino Delle Leggi del Regno di Napoli* (Napoli, 1811). Broers (2005) explains these states were annexed; Baccini (2019) explains that French law applied in full in these territories. Part of the Papal States was incorporated into the Cisalpine Republic (later Kingdom of Italy) by 1801, while the rest was annexed by France in 1809.

For Lombardy, Venetia, the Duchy of Modena, half of the Kingdom of the Two Sicilies (including Naples), part of the Papal States (excluding Rome), and for the mainland territories of the Kingdom of Sardinia, I find direct primary evidence showing copyright laws were introduced before 1815. For the Duchy of Parma, Tuscany, and for part of the Papal States (including Rome), I find evidence they were annexed by France directly, and that French laws would apply there, and I could not find any source claiming there was an exception to the 1793 law on copyright protections.⁸ I find explicit reference to copyright laws in Piedmont (Appendix A.5), one of the annexed states, and there are no reasons to believe that the other annexed states in Italy would be under different laws. Further, I find the 1810 French Penal code, with explicit punishments for violation of copyright laws,⁹ and clear indications it applied throughout the French empire, which includes the annexed Italian states.¹⁰

⁸Baccini explains (Google Translate): “Indeed, in the annexed departments as well as in the Kingdom of Italy, in addition to the application of the French legal codes, imperial legislation served as a constant point of reference.” (Baccini 2019, p.12).

⁹Specifically, articles 425 and 428.

¹⁰See Vinciguerra who writes (Google Translate): “During the few years that separated its promulgation from the

5.2 Copyright Laws in Post-Napoleonic Italy (post 1815)

Following the defeat of Napoleon and the subsequent Congress of Vienna (1815), France and Napoleon lost control of the Italian mainland. GM2020 claim that copyright laws in Lombardy and Venetia continued to apply. In fact, historical sources suggest that all Napoleonic laws relating to publishing, including copyrights, were abolished when the Kingdom of Lombardy-Venetia was controlled by the Habsburgs (Soresina 2018). Copyright laws are not introduced again until the 1830s.

In 1816, the Kingdom of Lombardy-Venetia enacted the ‘Piano generale di censura’ — the censorship master plan, explicitly repealing all Napoleonic laws which regulated publishing (see Appendix A.4 for further discussion).

Rouvier (2024), explicitly discussing opera performances, confirms that the Kingdom of Lombardy-Venetia did not enforce copyright laws in the immediate aftermath of the 1815 Congress of Vienna, and that both composers and librettists received no extra remuneration beyond the original commission.

5.3 Analysis of Historical Evidence cited by GM2020

I am unable to locate some of the primary sources GM2020 cite to support their claims, while other sources cited by GM2020 do not support the claims they make.

Evidence that Venice was part of the Cisalpine Republic in 1801

GM2020 present two pieces of primary evidence to support their claim that copyright laws applied in Venice. The first is a transcription of a page from “*Raccolta delle leggi, proclami, ordini ed avvisi pubblicati in Milano dal giorno 13 Pratile anno VIII, n.144 (Milano, 1801)*” showing Venice to be subject to the laws of the Cisalpine Republic. The second is a transcription of an 1803 letter from the composer Stefano Pavesi to the impresario Giacomo Pregliasco. In this letter, Pavesi rejects the offer of Giacomo Pregliasco to compose an opera for the Teatro Regio of Turin, as he receives a better offer from Venice; specifically he is paid an additional sum for each repeat performance. However, neither of the two transcriptions of evidence could be found in the archives cited by the authors.

First, the figure which shows Venice listed as belonging to the Cisalpine Republic and cited as *Raccolta delle leggi, proclami, ordini ed avvisi pubblicati in Milano dal giorno 13 Pratile anno VIII, n.144 (Milano, 1801)* does not appear in the Raccolta of 1800 or 1801. Figure 4 shows the evidence as shown by GM2020. The closest extract I could find was a list of the twelve departments in which the Cisalpine Republic was organized, with their main cities, from 1800. However, Venice is not listed.

dissolution of the Empire, the 1810 code remained in force throughout peninsular Italy, whose territories had been incorporated into the Empire or belonged either to the Kingdom of Italy or the Kingdom of Naples...’ (Vinciguerra 2010, p.114).

To the extent that the transcription is genuine, it is not from the 1800 or 1801 *Raccolta* as GM2020 claim.

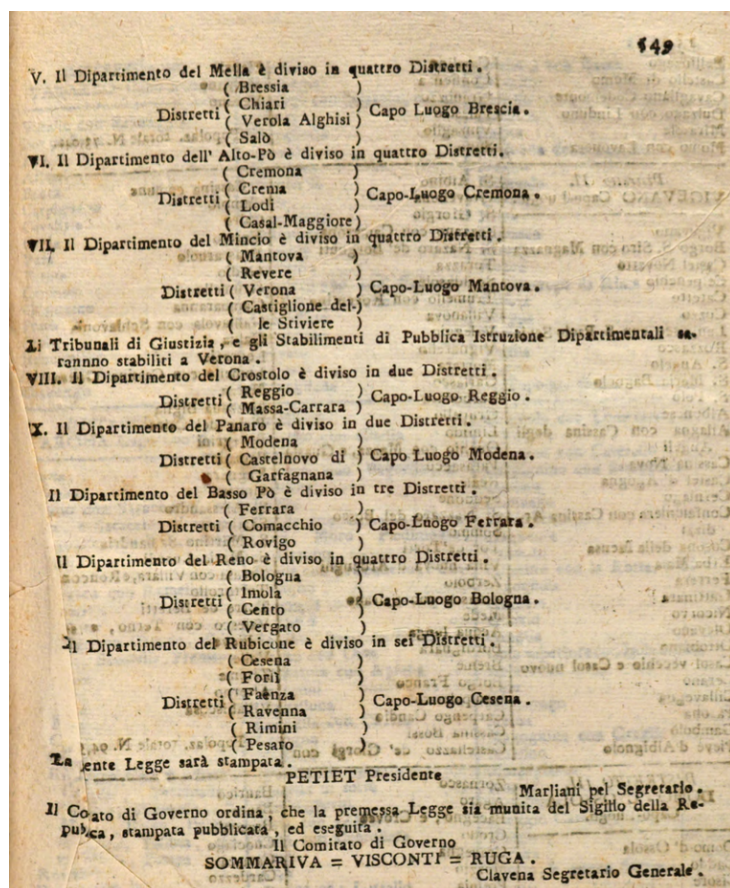
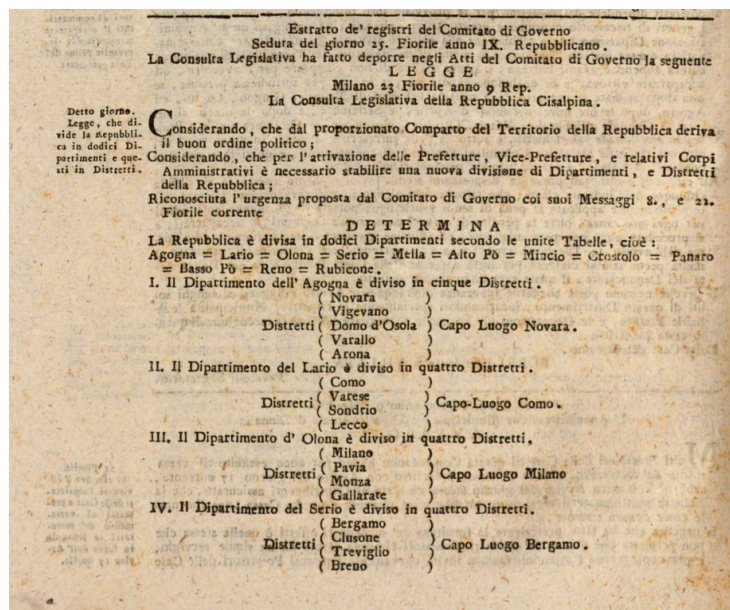
Figure 5: GM2020 Transcription of *Raccolta delle leggi, proclami, ordini ed avvisi pubblicati in Milano dal giorno 13 Pratile anno VIII, n.144 (Milano, 1801)*

ELENCO DELLA DIVISIONE IN DIPARTIMENTI DEL TERRITORIO DELLA REPPUBBLICA CISALPINA, SUSSEGUENTI LA PACE DI LUNEVILLE E SECONDO L'ART.12 DEL PRECEDENTE TRATTATO DI CAMPOFORMIO	
Denominazione de' Confini	Dipartimento
Olona	Milano
Alto Po	Casalmaggiore
Lario	Como
Alto Po	Cremona
Olona	Lodi
Alto Po	Pavia
Serio	Bergamo
Mella	Brescia
Alto Po	Crema
Mincio	Mantova
Olona	Valtellina
Olona	Contado di Chiavenna e Bormio
Polesine	Rovigo
Olona	Legnano
Mincio	Verona
Mella	Desenzano
Mincio	Venezia
Mincio	Padova
Basso Po	Vicenza
Panaro	Modena
Territori Toscani	Massa e Carrara
Reno	Legazioni di Bologna, Ferrara e Romagna

Source: Image from *Raccolta delle leggi, proclami, ordini ed avvisi pubblicati in Milano dal giorno 13 Pratile anno VIII, n.144, Milano, 1801*.

Figure 6 is an extract of *Raccolta delle leggi, proclami, ordini ed avvisi pubblicati in Milano dal giorno 13 Pratile anno VIII, n.144 (Milano, 1801), Tome II*. The entire document can be accessed at: <https://catalog.hathitrust.org/Record/009019435>. It is the closest image I could find resembling what GM2020 portray (Figure 5). Venice is not included, and Modena is listed.

Figure 6: Departments and Main Cities in the Cisalpine Republic in 1801



Second, the transcription of an 1803 letter from the composer Pavesi to the impresario Giacomo Pregliasco is cited as being found at the “Carte Sciolte N. 6253” of the Archivio dello Stato Centrale (ASC), in Rome. I could not find this collection in the archive catalog, as there is no “Archivio dello Stato Centrale.” The most similar institution I could find is the Archivio Centrale dello Stato; I communicated with the archive, who confirm that they do not have this collection nor this letter. Further, the Archivio Centrale dello Stato, since its inception, mostly contains documents post-unification (1861)—so a letter from 1803 existing in the archive would be unusual, though not impossible. The authors did not respond to my question about where I could find the original letter. Nonetheless, supported by the information earlier in this section, the letter would be unusual because in 1803 Turin had already been annexed into the French empire, and hence would have copyright laws, while Venice was yet to be under Napoleonic control, and thus did not have copyright laws.

In addition to this, GM2020 also cite Farluccio Foà’s writings in the encyclopedia Treccani, dated 2001, to support the claim that the newly introduced copyright laws applied to Venice. They quote two writings, both in the encyclopedia, titled ‘Copyright’ and ‘Diritto d’Autore’ (which means copyright in Italian). While I have not accessed the physical 2001 book, online, I have only been able to find the Italian article titled ‘Diritto d’Autore’, and could not find any reference to the ‘Copyright’ entry. I could not find any evidence Foà ever wrote in English, and his article on ‘Diritto d’Autore’ was first published in 1930. From the article ‘Copyrights’, GM2020 quote Foà as claiming:

“after Milan and Venice in 1801, the other major Italian city to adopt a copyright law was Rome in 1826”

This quote is very similar to what Foà writes in ‘Diritto d’Autore’. Foà writes (translation by Google Translate):

“In Italy, the first recognition of the “most sacred and most precious of properties” occurred with the law 19 floreal year IX (9 May 1801) of the Cisalpine Republic and with those of the Italian Kingdom; followed by the edict of 23 September 1826 for the Papal State...”¹¹

Foà, to the best of my understanding, does not explicitly claim Milan and Venice, but rather the Cisalpine Republic to have introduced copyright laws in 1801.

Evidence that the remainder of the States did not have copyright laws

To support their claims that other states did not have copyright laws under Napoleon, GM2020 cite Chandler (1966) and Bassi (2000).

¹¹Original Version: “In Italia, il primo riconoscimento della “più sacra e più preziosa delle proprietà” si ebbe con la legge 19 fiorile anno IX (9 maggio 1801) della Repubblica Cisalpina e con quelle del Regno Italico; seguirono l’editto 23 settembre 1826 per lo Stato Pontificio...”

First, the authors cite *The Campaigns of Napoleon* by David Chandler, published in 1966. Specifically:

“1805: Parma adopts the code civil without a copyright law (Chandler 1966, p. 89).

1806: Kingdom of Italy adopts the code civil without a copyright law (Chandler 1966, p. 89).

1809: Tuscany and Kingdom of Naples, adoption of code civil without a copyright law (Chandler 1966, p. 89).

1812: Papal States, adoption of code civil without a copyright law (Chandler 1966, p.89).”

Page 89 of Chandler (1966), however, does not discuss the Napoleonic code or the copyright law. The cited page (Appendix C.1) concerns the siege of Mantua in 1796–1797. The term “copyright” does not appear anywhere in the book. I could not find any passage in Chandler indicating that Parma, Tuscany, the Kingdom of Naples, or the Papal States received the Napoleonic Code, nor could I find any discussion suggesting that these states did not adopt copyright laws.

Second, GM2020 quote the PhD thesis *Storia del diritto d'autore nel teatro di Torino*.¹² by Alessandra Bassi, published in 2000, in their appendix. While not referenced in the main text, the contents the authors’ quote can be inferred to support that the copyright law enacted in Lombardy and Venetia continued to be applied after the Austrian takeover of the states in 1815. The passage they quote, however, is not a faithful representation of Bassi (2000). In fact, the GM2020 appendix only shows a crop of the sentence; the second part of the sentence explicitly states that musical compositions for theater (which would include operas) are not mentioned. The remainder of the paragraph explicitly says that impresarios kept the copyrights to musical compositions they had commissioned. I include in Appendix C.2 the quote by GM2020, the original quote, and its translation in English.

Evidence that Lombardy and Venetia retained their copyright laws after Napoleon

GM2020 claim that “Lombardy and Venetia’s copyright laws also survived the 1815 Congress of Vienna, which placed Lombardy and Venetia under the rule of Kaiser Franz I of Austria.” The cited evidence suggest the opposite. GM2020 cite the book *Italy before Italy: Institutions, Conflicts and Political Hopes in the Italian States, 1815–1860* by Soresina (2018) to support their claim. There is no specific discussion about intellectual property rights, and only a brief mention overall to the civil code, which goes in the opposite direction that the interpretation in GM2020. Specifically, Soresina (2018):

“ In Lombardy–Venetia, the French codes were repealed and almost entirely replaced with those of Austria.”

While Soresina states that the Napoleonic land registry system and the Napoleonic Commercial

¹²Translation: History of copyrights in the Turin theater.

Code remained intact in Lombardy–Venetia, the civil code, of which copyrights would be a part of, was replaced by the Austrian ABGB. I reached out to Professor Marco Soresina, clarified that he was unaware of any copyright laws applying to the Austrian-controlled Kingdom of Lombardy–Venetia prior to 1840 and confirmed my reading of his work.¹³

Overall

The historical evidence suggests a different timeline of copyright adoption than the one used in the paper. Specifically, Venetia is erroneously classified as belonging to the Cisalpine Republic in 1801, and Modena is erroneously classified as not being part of the Cisalpine Republic. Further, GM2020 does not take into account that the territories of the Kingdom of the Two Sicilies that were not on the island of Sicily were organized into the Kingdom of Naples which introduced copyright laws. Additionally, GM2020 overlook that the remainder of the states were directly annexed by France, and consequently applied French laws. Moreover, the Italian re-organization of the theater extends beyond the introduction of copyright protections. Censorship laws were changed, the arts were used to foster a common revolutionary identity (Poggi (2021), Poggi (2024)), and gambling was legalized in certain theaters (Bettin (2010)), leading to revenues increasing.

6 Conclusion

In conclusion, I raise issues which question the credibility of the results of GM2020. This is for three reasons. First, data inconsistencies across the replication package datasets, econometric misspecifications and incorrect Stata implementations of econometric procedures undermine the credibility of results. Second, their results cannot be replicated by external data sources. Third, the historical setting is not accurately portrayed, and it is not appropriate for establishing causal effects of copyright on opera production. As the authors refused to share their raw data and the sources of some of their data and some of their historical evidence, I am unable to locate the source of the discrepancies. This report therefore highlights the value of completely publicly available replication packages for data processing and collection.

¹³Personal correspondence with Marco Soresina on the 25th of September, 2025.

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Appendix A — Primary Sources relating to Copyright

A.1 — Graziosi & Sonzogno

I am attaching below a letter from the *Magistrato di Revisione*, an officer working for the state bureaucracy to the minister of the interior. The latter is dated 19th of April 1806. The writer explains that copyright laws are not yet enforced in Venetia, and as such he cannot take any action on the case of Sonzogno.



Figure A1: Letter from *Magistrato di Revisione* to the Minister of the Interior

Italian transcription:

REGNO D'ITALIA Milano li 19 Aprile 1806

IL MAGISTRATO DI REVISIONE

A Sua Eccellenza il Ministro dell'Interno

Dalla Direzione della Pubblica Istruzione ci viene trasmessa l'unita petizione dello Stampatore Sonzogno per gli opportuni provvedimenti di nostra competenza.

Non avendo finora questo Magistrato verun ordine o autorizzazione di estendere le sue incombenze negli stati ex veneti, non può che rimettersi la pratica alla V. E. alla quale abbiamo l'onore di rassegnare il nostro rispetto.

English Translation (Google Translate):

KINGDOM OF ITALY Milan, April 19th, 1806

THE MAGISTRATE OF REVISION

To His Excellency the Minister of the Interior

From the Directorate of Public Education we have received the attached petition of the printer Sonzogno for the appropriate measures within our competence.

Since this Magistrate has not yet received any order or authorization to extend its duties to the former Venetian territories, we can only forward the matter to Your Excellency, to whom we express our deepest respect.

Below I also attach the cover of the dossier, showing it concerns specifically the case of copyrights and the application of the law GM2020 claim to study, *Legge 19 Fiorile*.

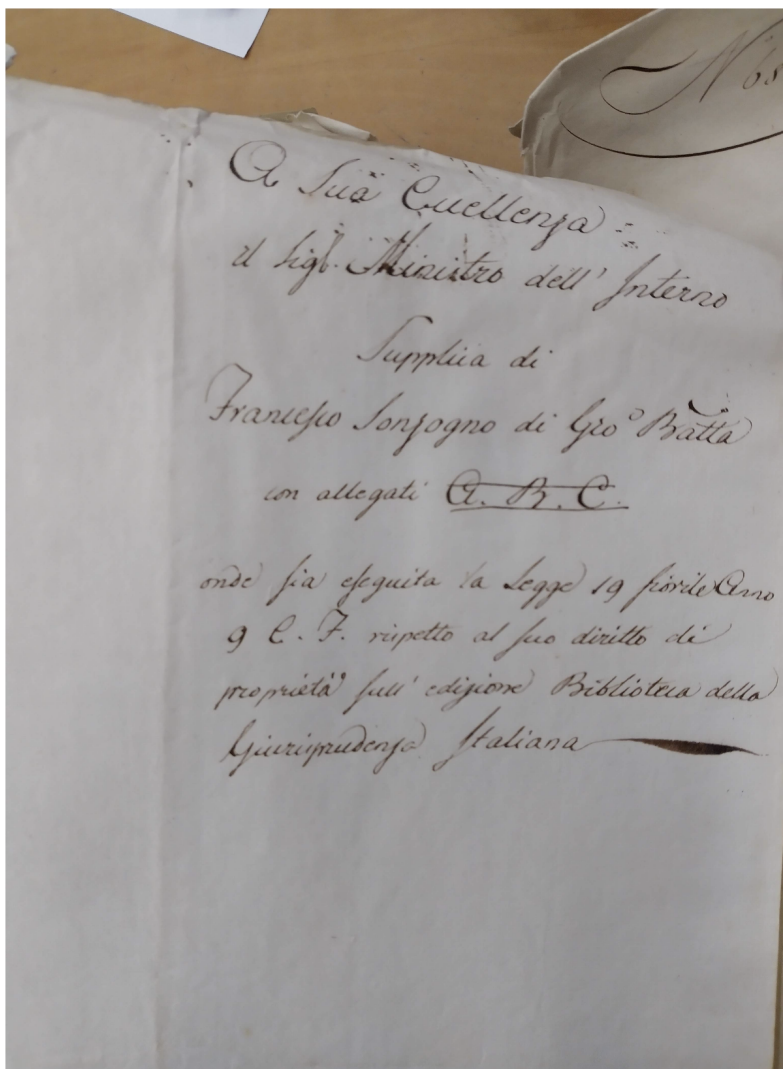


Figure A2: Cover of the dossier

Transcription:

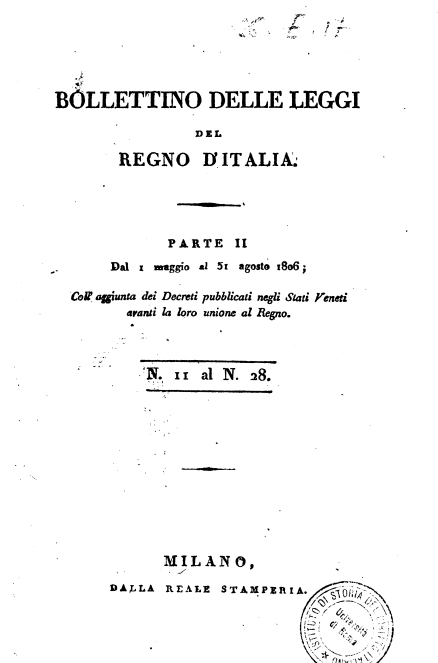
A Sua Eccellenza il sig. Ministro dell'Interno Supplica di Francesco Sonzogno di Giobata con allegati A. B. C. onde sia eseguita la Legge 19 fiorile Anno 9 C. F. rispetto al suo diritto di proprietà sull'edizione Biblioteca della Giurisprudenza Italiana.

Translation (Google Translate):

To His Excellency the Minister of the Interior Petition of Francesco Sonzogno di Giobatta with attachments A, B, C, that the Law of 19 Floréal, Year 9 of the French Republic be applied with regard to his right of ownership over the edition Library of Italian Jurisprudence.

A.2 — 1806 Bollettino Delle Leggi del Regno d'Italia

The below shows that the Kingdom of Italy introduced copyright laws in Venice in the summer of 1806.



(a) Cover Page

(741)
(N. 112) *Decreto che estende ai dipartimenti Veneti riuniti le disposizioni della Legge 19 fiorile anno IX che accordano il diritto di privativa agli autori delle produzioni d'ingegno.*

27 giugno 1806.

NAPOLIONE I,

Per la grazia di Dio e per le Costituzioni;

IMPERATORE DE' FRANCESI E RE D' ITALIA:

*EUGENIO NAPOLEONE DI FRANCIA,
Vice-Re d'Italia, Principe di Venezia,
Arcicancelliere di Stato dell'Impero Francese,
a tutti quelli che vedranno le presenti, salute.*

Noi, in virtù dell'autorità che ci è stata delegata dall'altissimo ed augustissimo Imperatore e Re NAPOLEONE I, nostro onoratissimo Padre e grazioso Sovrano;

Sopra rapporto del Ministro dell' Interno del giorno 12 maggio 1806;

Riconosciuta la necessità di applicare anche ai dipartimenti riuniti le disposizioni della Legge 19 fiorile anno IX (9 maggio 1801), le quali assicurano agli autori il diritto di privativa sulle loro produzioni;

Vista la Legge 19 fiorile anno IX,
Sentito il Consiglio di Stato,

(b) Page 741

Figure A3: Extract from the *Bollettino delle Leggi del Regno D'Italia*

Abbiamo decretato e decretiamo quanto segue:
Art. I. La Legge 19 fiorile anno IX, è pubblicata ed attivata nei dipartimenti riuniti.

II. Gli stampatori tanto dei dipartimenti riuniti, quanto degli altri dipartimenti, i quali, prima della pubblicazione del presente Decreto, hanno intrapresa o compiuta la ristampa di opere che godevano del diritto di privativa nei rispettivi Stati, dovranno nel termine di quindici giorni presentare alle rispettive Prefetture l'elenco e le relative prove delle ristampe già incominciate od ultimate prima della sovraccennata epoca, che saranno rimesse al Ministro dell'Interno.

III. Eccettuate queste ristampe per tutte le opere privilegiate, hanno luogo in tutti i dipartimenti del Regno le disposizioni e i diritti di privativa che la Legge 19 fiorile anno IX attribuisce agli autori di produzioni d'ingegno.

Il Ministro dell'Interno è incaricato della esecuzione del presente Decreto che sarà pubblicato ed inserito nel Bollettino delle Leggi.

EUGENIO NAPOLEONE.

Per il Vice-Re,

Il Consigliere Segretario di Stato,

L. VACCARI.

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Legge 19 fiorile anno IX, che si pubblica in esecuzione dell'art. 1 del Decreto 27 giugno 1806.

ESTRATTO DEI REGISTRI DEL COMITATO DI GOVERNO.

Seduta del giorno 19 fiorile anno IX Rep.

La Consulta Legislativa ha fatto deporre negli atti del Comitato di Governo la seguente

L E G G E.

Milano li 19 fiorile anno IX Repubblicano.

LA CONSULTA LEGISLATIVA
DELLA REPUBBLICA CISALPINA

Considerando, che le produzioni dell'ingegno sono la più preziosa, e la più sacra delle proprietà;
Riconosciuta l'urgenza proposta dal Comitato di Governo con suo Messaggio 6 fiorile corrente,

Determina:

» I. Gli autori di scritture d'ogni maniera, » i compositori di musica, i pittori e i disegnatori, che faranno incidere quadri, o disegni, godranno per l'intero decorso della

(d) Page 743

Figure A3: Extract from the *Bollettino delle Leggi del Regno D'Italia* (continued)

(744)
» loro vita il diritto esclusivo di vendere, far vendere, distribuire le opere loro nel territorio cisalpino, e di cederne la proprietà in tutto, o in parte.

» II. I loro eredi, o cessionari godranno lo stesso diritto per lo spazio di dieci anni dopo la morte degli autori.

» III. I Magistrati competenti saranno tenuti di far confiscare ad istanza, ed a profitto degli autori, compositori, pittori o disegnatori, ed altri loro eredi o cessionari, tutti gli esemplari delle edizioni impresse, o incise senza la permissione formale, e per iscritto degli autori.

» IV. Ogni contraffattore sarà tenuto di pagare al vero proprietario una somma equivalente al prezzo di due mila esemplari dell'edizione originale.

» V. Ogni spacciatore di edizione contraffatta, s'egli non è riconosciuto il contraffattore, sarà tenuto di pagare al vero proprietario una somma equivalente al prezzo di quattrocento esemplari dell'edizione originale.

» VI. Ogni arbitrario editore di scritture, disegni o musiche inedite d'autori cisalpini, sarà verso loro tenuto alla reintegrazione dei danni da liquidarsi nelle vie civili.

» VII. È proibito alle Compagnie sceniche di dare alcuna rappresentazione di autori cisalpini senza il loro assenso; ed i contraffattori saranno parimente tenuti alla reintegrazione dei danni nelle vie civili.

» VIII. Ogni cittadino, il quale darà alla luce un'opera o di letteratura, o d'incisione, o di qualunque maniera, sarà tenuto di

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» deporre due esemplari nella Biblioteca nazionale, ritirandone ricevuta sottoscritta dal bibliotecario senza la quale non potrà essere ammesso in giustizia contro i contraffattori.

» La presente Legge sarà stampata.

Firmat. PETIET PRESIDENTE.

Sott. BRUNETTI Pro-Segretario.

Il Comitato di Governo ordina che la premessa Legge sia munita del Sigillo della Repubblica, stampata, pubblicata ed eseguita.



IL COMITATO DI GOVERNO;
SONMARIVA=VISCONTI=RUGA:
CLAVENA Segret. gener.

Certificato conforme;

Il Consigliere Segretario di Stato,

L. VACCARI.

(e) Page 744

(f) Page 745

Figure A3: Extract from the *Bollettino delle Leggi del Regno D'Italia* (continued)

Translation of first two pages:

(No. 112.) DECREE extending to the united Venetian departments the provisions of Law 19 Floril, Year IX, which grant exclusive rights to authors of intellectual creations.

June 27, 1806.

NAPOLEON I,

By the grace of God and the Constitutions, EMPEROR OF THE FRENCH and KING OF ITALY:

EUGENE NAPOLEON OF FRANCE, Vice-King of Italy, Prince of Venice, Archchancellor of State of the French Empire, to all who see these presents, greetings.

We; by virtue of the authority delegated to us by the Most High and Most August Emperor and King NAPOLEON I, our most honored Father and gracious Sovereign;

On the report of the Minister of the Interior dated May 12, 1806;

Recognizing the need to also apply to the united departments the provisions of Law 19 Floril Year IX (May 9, 1801), which guarantee authors exclusive rights to their works;

Having seen Law 19 Floril Year IX, Having consulted the Council of State,

We have decreed and hereby decree the following:

Art. I. Law 19 Floril Year IX is published and implemented in the united departments.

II. Printers of both the united departments and other departments who, prior to the publication of this Decree, have begun or completed the reprinting of works that enjoyed exclusive rights in their respective States, must within fifteen days submit to their respective Prefectures the list and relevant proofs of the reprints already begun or completed before the aforementioned period, which will be submitted to the Minister of the Interior.

III. With the exception of these reprints for all privileged works, the provisions and exclusive rights that Law 19 Fiorile Year IX attributes to authors of intellectual works shall apply in all departments of the Kingdom.

The Minister of the Interior is responsible for the execution of this Decree, which will be published and included in the Bulletin of Laws.

EUGENE NAPOLEON.

For the Viceroy,

The Secretary of State,

L. VACCARi

A.3 — 1811 Bulletino Delle Leggi del Regno di Napoli

BULLETTINO DELLE LEGGI

DEL

REGNO DI NAPOLI

Anno 1811.

Da luglio a tutto dicembre.

SECONDA EDIZIONE.



IN NAPOLI

NELLA FONDERIA REALE,
E STAMPERIA DELLA SEGRETERIA DI STATO.
1813.

(a) Cover Page

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partiene, sono incaricati della esecuzione del presente decreto.

Firmato, GIOACCHINO NAPOLEONE.

Da parte del Re

Il Ministro Segr. di Stato, firm. PIGNATELLI.

(N.º 1154) *Decreto contenente un sistema pe' teatri e spettacoli.*

Napoli, 7 Novembre.

GIOACCHINO NAPOLEONE RE DELLE DUE SICILIE.

Visti i decreti de' 29 d' agosto 1807 e de' 18 e 22 d' ottobre 1808 ;

Visto il rapporto de' nostri Ministri dell' interno e della polizia generale ;

Udito il nostro Consiglio di Stato ;

Abbiamo DECRETATO E DECRETIAMO quanto siegue:

ART. I. Restano confermate al nostro Ministro dell' interno le attribuzioni contenute ne' decreti de' 29 d' agosto 1807 e de' 24 di dicembre 1808 relativamente a' teatri così fissi come provvisori o mobili. Le medesime attribuzioni sono estese a tutti gli spettacoli, feste e rappresentazioni di ogni sorta date nelle case o in altri luoghi di privata proprietà ; quando l' accesso ne' medesimi si darà per mezzo di biglietti non indicanti le persone invitate. Questi spettacoli, feste e rappresentazioni dovranno essere anche approvate dal nostro Ministro di polizia.

2. Per

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Figure A4: Extract from the *Bullettino delle Leggi del Regno di Napoli*

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2. Per l'esercizio delle facoltà attribuite al nostro Ministro dell'interno sarà creata una Commissione de' teatri e spettacoli, e questa preseduta dal soprintendente. Le funzioni di essa si limiteranno alla sola capitale. Nelle provincie queste medesime attribuzioni saranno esercitate dagl' Intendenti o dagl' altri funzionarj amministrativi, sotto la vigilanza però degl' Intendenti medesimi.

La Commissione sarà composta di quattro membri e due supplenti, tutti nominati da Noi sulla proposta che ce ne farà il nostro Ministro dell'interno.

3. Le costruzioni de' teatri permanenti debbono essere autorizzate da Noi, conformemente al decreto de' 29 d'agosto 1807: ed allorchè le permetteremo, sarà divisato il nome che porterà il teatro.

4. I teatri fissi sono di due classi. Nella prima son compresi quelli destinati alle rappresentazioni perfette per mezzo di compagnie scelte e di un credito riconosciuto, in musica o senza. Nella seconda son quelli ove si rappresentano le azioni popolari in musica o senza, e da compagnie di principianti o mediocri nell' arte. Sul rapporto del nostro Ministro dell'interno Noi fissaremo i teatri appartenenti a ciascuna classe.

5. Ogni teatro dee avere un archivio o sia repertorio di opere da rappresentarvisi. Lo sta-

bi-

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bilisce il Ministro dell'interno il quale vi ammetterà quelle che, avuto riguardo a' teatri di prima e seconda classe, posson convenire agli uni e agli altri.

Ad un'epoca determinata gli appaltatori dovranno presentare i repertori alla Commissione la quale dopo di avervi fatto tutte le addizioni e modificazioni che giudicherà necessarie, gli sottometterà per mezzo del suo presidente al Ministro. Questi dovrà approvargli definitivamente.

Un duplicato del repertorio sarà depositato presso il Ministro della polizia: e lo stesso si praticherà pe' pezzi di musica, a misura che si vogliono mettere in iscena.

6. Le opere una volta approvate dal Ministro dell'interno e della polizia per la parte che quest' ultimo dee prendervi, in conformità dell' art. 15 del nostro decreto de' 22 d'ottobre 1808, non avran bisogno di ulteriori autorizzazioni. Le nuove dovranno essere tutte individualmente approvate dal Ministero dell'interno e da quello della polizia generale. Ciascuno de' due Ministeri può proibire per circostanze particolari l'esecuzione di alcune delle opere approvate, facendone bensì rapporto a Noi.

7. Le rappresentazioni teatrali sono proprietà degli autori. La musica sopra di esse composta è anche proprietà de' maestri di cappella. I primi sono obbligati di darne una copia netta

...

(d) Page 279

Figure A4: Extract from the *Bullettino delle Leggi del Regno di Napoli* (continued)

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all' archivio del Ministero dell'interno, i secondi debbono dare una copia dello spartito al real conservatorio di musica. Nè l'archivio, nè il conservatorio potranno rilasciarne copia a chicchessia senza il consenso scritto degli autori, in seguito del quale il Ministro ne abbia rilasciato le licenze.

8. Una compagnia o un impresario che voglia rappresentare o far rappresentare la prosa o la musica, dee giustificare presso il soprintendente de' teatri, o presso l'Intendente della provincia ove la rappresentazione vuol farsi, che ne abbia ottenuto il consenso dagli autori suddetti. Nel caso che costoro pretendano per tal consenso un premio esorbitante, il Ministro dell'interno, udita la Commissione degli spettacoli, potrà ridurlo al giusto. L' inosservanza di questo articolo dà dritto agli autori di domandare in giudizio le indennizzazioni per abuso della proprietà altrui.

9. Gl' impresarj debbono presentare al soprintendente le liste delle loro compagnie prima di contrattare con alcuno individuo. Ogni attore o ballerino avrà una patente del soprintendente, nella quale sarà espresso se sia stato riconosciuto abile pe' teatri di prima o di seconda classe, e sarà in oltre spiegato il rango, se di primo attore o ballerino, di secondo e di terzo, o di figurante. La lista di tali patenti

sarà

(e) Page 280

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sarà sempre inviata immediatamente al Ministero dell'interno, e per essa non si esigerà nè dritto nè indennità veruna. Tali patenti saranno viste dalla polizia, e daranno il dritto agli attori di potersene valere anche pe' teatri delle provincie.

È proibito agl' impresarj di contrattare oogl' allievi del real conservatorio di musica; ed è proibita al soprintendente di dar loro qualunque patente senza l'autorizzazione speciale del Ministro dell'interno.

10. Le patenti non dispensano gl' impresarj dal far conoscere il complesso delle compagnie al soprintendente, il quale potrà escludere quegli attori o ballerini che non gli sembrano convenienti al buon successo che dalle dette compagnie si dee attendere. I cambiamenti degl' individui di una compagnia non si faranno dagl' impresarj senza l'autorizzazione speciale del soprintendente.

11. Se le convenzioni degl' impresarj non avran per norma le suddette patenti, lor si dovrà impedire l'esecuzione degli spettacoli.

12. Non si spediranno passaporti per l'interno o fuori del regno ad attori, ballerini o suonatori, senza esserne inteso il soprintendente.

13. Ne' teatri di prima e seconda classe le opere in musica non andranno in iscena se non dopo che il soprintendente ed un membro

al-

(f) Page 281

Figure A4: Extract from the *Bullettino delle Leggi del Regno di Napoli* (continued)

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almeno della Commissione avranno assistito all'ultima prova, ed avranno rilasciato la licenza in iscritto di affiggersi il cartello.

14. Tale licenza è necessaria per ogni rappresentazione, e sarà rilasciata nel giorno precedente o nelle prime ore della mattina, senza che per essa si paghi nè dritto nè indennità alcuna. I difetti notabili nell'esecuzione delle opere in musica o senza, ed i pretesti non legittimi dell'attori o suonatori che manchino al loro dovere, saran soggetti ad una multa pecuniaria che non sia minore di un ducato nè maggiore di ducati sei. Il soprintendente colla Commissione decideranno sulle quantità della multa: ma questa non potrà eseguirsi che approvata dal Ministro dell'interno. Questo articolo del presente decreto sarà citato in ogni licenza di rappresentazione: e gl'impresarij avranno il dritto di ripeterne l'equivalente dall'attore o suonatore che abbia mancato.

15. Uno de' membri della Commissione terrà la cassa delle multe, il cui prodotto sarà impiegato ad incoraggiare le composizioni drammatiche in musica o in prosa.

16. Per essere impresario di un teatro dovranno le persone munirsi di un attestato della polizia che gli dichiara non impediti a questo ufficio. In seguito ne farà la domanda al Ministro dell'interno, nella quale spiegherà i mezzi-

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mezzi che sono in suo potere; ne sarà preso informo dalla Commissione de' teatri; ed in seguito di discussione fattane dall'Intendente di Napoli, giudicherà il Ministro se debba concedergliene la licenza, o negargliela. Qualunque impresario caduto in fallimento sarà inhabilitato ad ottenere altra licenza, se non nel caso che presenti una fidejussione che sembri sufficiente al Ministro dell'interno.

17. I possessori de' teatri non potranno darli in affitto se non ad impresarij muniti di tale licenza. Qualora vogliano destinare ad altri usi i teatri di loro proprietà, debbono esserne parimente autorizzati dallo stesso Ministro. Nel caso che vogliano abolirli, ne sarà fatto rapporto a Noi: e ci riserbiamo il dritto di acquistarne la proprietà, se così convenga.

18. Non si permetterà alcuna compagnia ambulante di attori che non sia autorizzata da' Ministri dell'interno e della polizia generale. Sarà a simili compagnie proibito d'improvvisare: e le loro azioni drammatiche di qualunque natura dovranno essere approvate da' nostri Ministri dell'interno e della polizia, e nelle provincie dagl'Intendenti e sottintendenti, secondochè la rappresentazione avrà luogo nelle loro rispettive residenze.

Potranno le medesime autorità, sia per motivi generali, sia per circostanze particolari, sospendere

(h) Page 283

Figure A4: Extract from the *Bullettino delle Leggi del Regno di Napoli* (continued)

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dere le rappresentazioni ed anche far chiudere i teatri, salvo il rapporto da farne alle autorità immediatamente superiori.

19. Ogn'impresario ha dritto di far eseguire le rappresentazioni approvate nel teatro di cui è in possesso: ma questa facoltà è limitata da' contratti in vigore, e da quelle disposizioni che darà il soprintendente autorizzato dal Ministro dell'interno.

20. Le sospensioni oltre il convenuto ne' contratti possono aver luogo per causa pubblica, e questa emanerà dal Ministro; o per circostanze particolari, le quali quante volte sieno fuori del solito, il soprintendente ne farà rapporto all'anzidetto Ministro.

21. Nelle provincie gl'Intendenti o quelli che avranno essi incaricati di disimpegnare queste funzioni daranno le convenevoli providenze per eseguirsi o sospendersi gli spettacoli.

22. La Commissione de' teatri e spettacoli assisterà a tutte le rappresentazioni, e si assicurerà dell'osservanza de' regolamenti relativamente a' repertorj. Perciò il soprintendente destinerà un teatro a ciascun membro che invigilerà. Questa destinazione sarà approvata dall'Ministro dell'interno, e si rinnoverà ogni sei mesi.

La Commissione prenderà ragione e deciderà di tutte le controversie insorte fra gl'impresarij e gli attori. Nelle provincie queste contro-

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troverbie verranno decise dagl'Intendenti.

23. In caso di assenza del soprintendente generale, le di lui funzioni saranno rimpiazzate dal membro della Commissione il più antico per ordine di nomina. La stessa disposizione avrà luogo pe' supplenti relativamente a' membri della Commissione.

24. Per l'esercizio delle attribuzioni date al corpo della Commissione, la medesima si unirà due volte al mese, o anche più spesso se l'utilità del servizio lo esiga. Sarà proposto tutto ciò che tocca nelle sue sessioni l'oggetto generale del servizio ed ogni progetto di miglioramento. Gli affari vi saranno decisi con maggioranza di voti.

25. Il soprintendente non potrà prendere alcuna determinazione, le cui disposizioni non sieno le conseguenze necessarie de' principj stabiliti nel presente decreto. Quando si tratti d'innovazione, il soprintendente la proporrà alla Commissione, prenderà il di lei avviso, e ne farà rapporto al Ministro. Il soprintendente terrà solo la corrispondenza col Ministro, ed in fine di ogni mese gli dirigerà un rapporto dettagliato sulla situazione di ogni teatro, considerato sotto il doppio aspetto della disciplina interna e del progresso dell'arte.

26. In ogni tre mesi si terrà un Consiglio dalla Commissione, nel quale si faranno per gli

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Figure A4: Extract from the *Bullettino delle Leggi del Regno di Napoli* (continued)

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gli attori di ogni genere le osservazioni sulla loro buona condotta, relativamente alla loro professione, e su i loro talenti drammatici. Sarà perciò formato uno stato nominativo per ciascun teatro o compagnia; e le osservazioni saranno scritte in margine ed allato del nome di ciascun attore. Un duplicato di questo stato e del processo verbale della seduta sarà rimesso al Ministro dell'interno.

27. Sulla condotta degli attori mentre sono nel teatro, sulle precauzioni che debbono prendersi sul palco e fuori del palco, sempre relativamente alla riuscita della rappresentazione, invigila il soprintendente, o il membro della Commissione a cui appartiene, e dà le disposizioni che stima. L'uno e l'altro hanno la facoltà di fissare l'ora dello spettacolo, di farla cambiare, se occorre, di far levare o abbassare il sipario, e di far togliere qualche pezzo di musica o di ballo, secondo le circostanze: ben inteso però che qualunque cambiamento debbe essere precedentemente annunziato al pubblico; e se quello proceda da qualche improvviso accidente, il motivo ne sarà anche pubblicamente annunziato. Spetta pure esclusivamente al soprintendente di dare tutte le disposizioni che debbono eseguirsi dall'impresario, dagli attori, da' ballerini, da' suonatori, per tutto ciò che appartiene all'esercizio dell'arte loro ed alla buona riuscita della rappresentazione. Non

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Non sarà permesso l'ingresso agli estranei sul palco scenico, e ne sarà impedita l'uscita agli attori in abiti di teatro.

28. Il nostro Ministro della polizia generale trasmetterà gli ordini opportuni al Prefetto per l'esercizio delle attribuzioni che gli vengono concesse da' decreti de' 29 agosto 1807 e de' 18 e 22 d'ottobre 1808; e darà le disposizioni necessarie perchè ad ogni rappresentazione assista un commissario di polizia e quel numero d'ispettori che saranno giudicati necessari, e perchè il soprintendente e il membro che ne fa le veci, abbia il braccio forte tutte le volte che lo richiederà per l'esercizio delle sue funzioni.

29. Il soprintendente rimetterà nel Ministero dell'interno i libretti delle nuove opere per presentarsi dal Ministro alle persone reali.

Rimetterà ugualmente in ogni quindici giorni il repertorio delle opere da rappresentarsi nel teatro francese e negli altri teatri di prosa, del pari che il rapporto giornaliero delle produzioni che si espongono in doppia copia, una delle quali ci sarà presentata dall'anzidetto Ministro.

30. In tutti i teatri di prima e seconda classe vi sarà un palco ad uso del soprintendente e della Commissione. Il soprintendente può ri-

X 2 ser-

(l) Page 287

Figure A4: Extract from the *Bullettino delle Leggi del Regno di Napoli* (continued)

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servare a se solo di presedere al primo teatro della capitale detto di S. Carlo, e può intervenire e presedere allo spettacolo in tutti gli altri, anche quando vi si trovi uno de' membri della Commissione, destinati a tenere dell'articolo 22.

31. Il prefetto di polizia avrà un palco in ogni teatro: e parimente sarà destinato un palco pel commissario di polizia che assiste ad ogni teatro; e ciò sino a che venga preparato in ciascun teatro e vicino all'ingresso un locale opportuno e decente ove possa risiedere. Quando questi locali saranno disposti, il commissario cesserà di avere un palco: ed allora saranno, oltre il locale suddetto, riservate due sedie a scelta del Prefetto, una pel commissario, e l'altra per uso degli ispettori.

32. Il soprintendente elegge i subalterni, ne dirige la condotta in officio, sospende loro le retribuzioni, gli multa secondo le regole stabilite nell'articolo 14, e gli congeda dal servizio. I membri della Commissione fanno rapporto al soprintendente della loro buona o cattiva condotta.

33. Il soprintendente prenderà particolar cura della decenza del vestiario e dello scenario, e pe' due teatri di S. Carlo e del Fondo ne esaminerà ed approverà i modelli col parere della Commissione.

34. Il

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34. Il soprintendente approverà il prezzo fisso de' palchi e delle sedie, e ne darà parte al Ministro dell'interno, da cui dee attendere le disposizioni.

35. Ne' casi di gran concorso allo spettacolo, i prezzi eventuali de' palchi e sedie non appaltate non potranno essere maggiori del doppio de' prezzi ordinarij.

36. Ogni spettacolo teatrale sarà annunziato al pubblico con un cartello stampato precedentemente col visto buono del soprintendente.

37. In ciascun teatro si daranno due rappresentazioni l'anno a beneficio de' poveri, l'una in estate, l'altra nell'inverno. L'introito di queste due rappresentazioni si farà sotto la vigilanza della Commissione amministrativa degli ospizj, la quale potrà destinarvi agenti di sua scelta.

38. Saran formati de' regolamenti in dettaglio per la particolar condotta de' subalterni, degl'impresarij, degli attori, ballerini e suonatori, i quali saranno sottoposti alla nostra approvazione dal nostro Ministro dell'interno.

39. I nostri Ministri della giustizia, dell'interno e della polizia generale sono incaricati dell'esecuzione del presente decreto, ciascuno per la parte che lo concerne.

Firmato, GIOACCHINO NAPOLEONE.

Da parte del Re

Il Ministro Segr. di Stato, Firm. PIGNATELLI.

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Figure A4: Extract from the *Bullettino delle Leggi del Regno di Napoli* (continued)

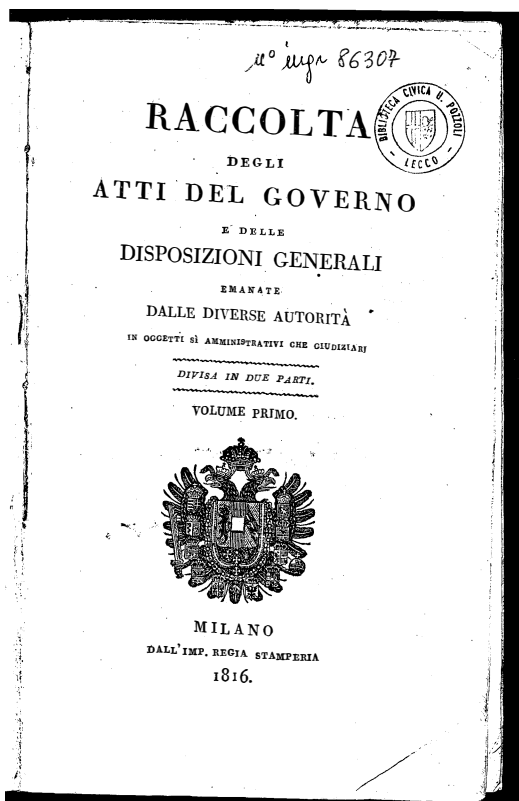
Articles 7, 8, respectively (Google Translate):

Theatrical representations are the property of the authors. The music composed upon them is also the property of the chapel masters [composers]. The former are obliged to give a clear copy to the archive of the Ministry of the Interior, the latter must give a copy of the score to the Royal Conservatory of Music. Neither the archive nor the conservatory may release a copy to anyone without the written consent of the authors, following which the Minister has issued the licenses.)

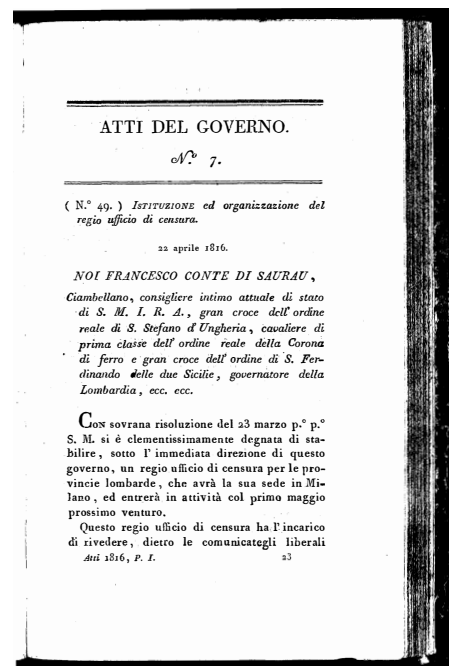
A company or an impresario wishing to represent or have represented prose or music, must justify to the Superintendent of Theaters, or to the Intendant of the province where the representation is to take place, that they have obtained the consent of the aforementioned authors. In the case that they demand an exorbitant premium for such consent, the Minister of the Interior, having heard the Commission of Spectacles, may reduce it to what is just. Non-observance of this article gives authors the right to ask in court for indemnities for abuse of another's property.

A.4 — Censorship Law of 1816, Kingdom of Lombardy-Venetia

The below extract shows that the Napoleonic publishing laws were cancelled.

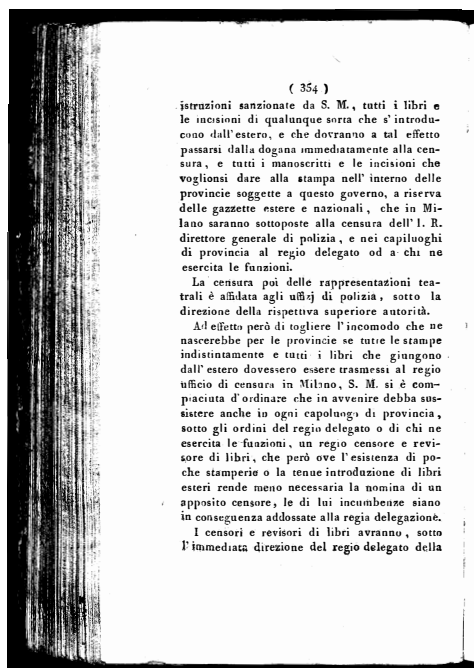


(a) Page 1

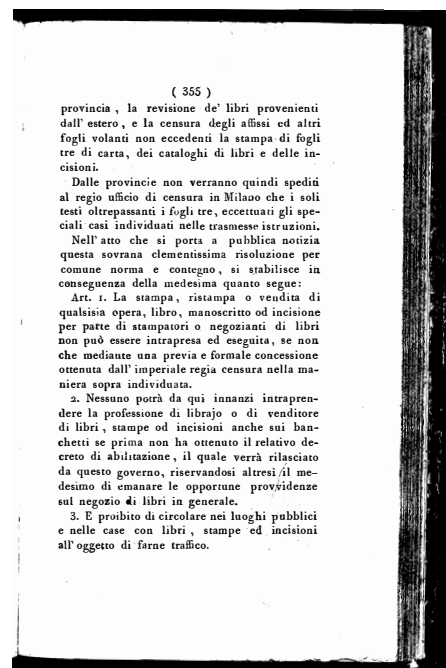


(b) Page 2

Figure A5: Extract from the 1816 *Raccolti Degli Atti Del Governo*

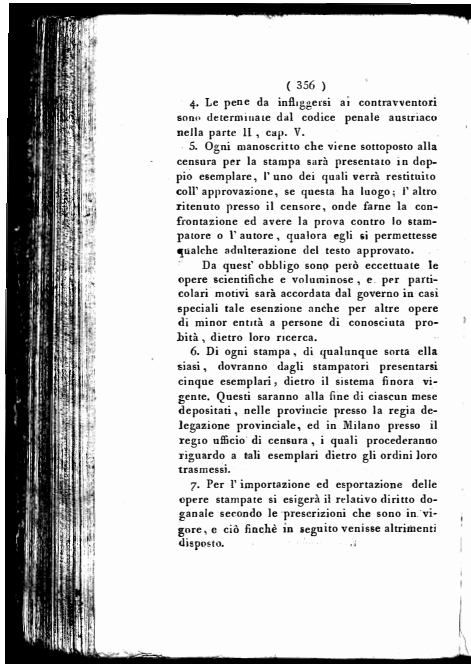


(c) Page 3

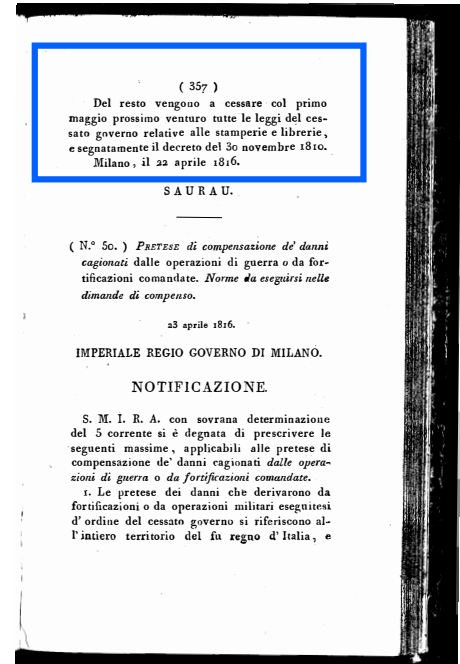


(d) Page 4

Figure A5: Extract from the 1816 *Raccolti Degli Atti Del Governo* (continued)



(e) Page 5



(f) Page 6

Figure A5: Extract from the 1816 *Raccolti Degli Atti Del Governo*

English translation of extract (Google Translate):

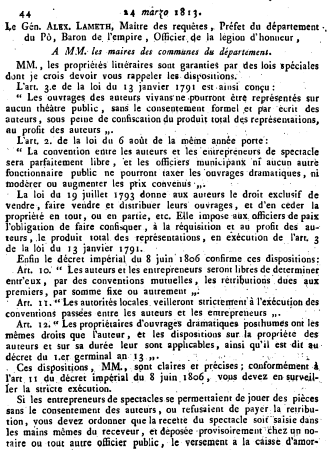
Moreover, all the laws of the former government relating to printing presses and bookstores will cease to be in effect from the first of May next, and in particular the decree of November 30, 1810.

Milan, April 22, 1816.

A.5 — French 1793 Copyrights Law mentioned in Turin 1813 Raccolta



(a) Page 1



(b) Page 2

Figure A6: Extract from the 1813 *Raccolta di Leggi, Decreti, Proclami, Manifesti, Ec.* (Torino, 1813)

24 marzo 1813. 45
 rissement devant avoir lieu après trois mois, si à cette époque le dépôt n'a pas été retiré.
 La bonne organisation du théâtre italien dépend en grande partie de la rigoureuse exécution de ces dispositions, et je ne doute point de votre zèle pour coopérer à une réforme désirée depuis si long tems.
 Recevez, MM., l'assurance de ma parfaite considération.
 Turin, le 24 mars 1813.
 Pour le gén. préfet, en tournois, le secrétaire gén., délégué, THÉODORAT.
 Le Gén. ALEX. LAMETH, Maire des requêtes, Préfet du département du Pô, Baron de l'empire, Officier de la légion d'honneur,
 A MM. les maires du département.
 MM., le moment est venu de s'occuper de la nomination des répartiteurs de la contribution de 1814. Je vous invite à adresser sur-le-champ à M. le sous-préfet de votre arrondissement une liste *des dix propriétaires* que vous jugerez les plus propres à remplir ces fonctions.
 Je saisis cette occasion de vous rappeler que dans les communes, où il existe un rôle fait d'après les nouvelles opérations cadastrales, les répartiteurs n'auront à s'occuper que des rectifications que pourraient exiger les matrices des propriétés bâties.
 Recevez, MM., l'assurance de ma parfaite considération.
 Turin, le 31 mars 1813. Pour le gén., préfet, THÉODORAT.
 A V I S.
 Le général, préfet du département du Pô, s'empresse de porter à la connaissance de ses administrés la nouvelle mesure de faveur prise par le gouvernement envers ceux qui s'adonneront à la fabrication de l'indigo de pastel. D'après les instructions de S. E. le ministre des manufactures et du commerce, la fabrication d'une quantité de 200 kilogrammes n'est pas nécessaire pour avoir droit aux primes accordées en exécution du décret impérial du 14 janvier dernier, aux personnes qui se livrent à cette spéculation avantageuse. Il suffit de justifier d'une fabrication de 50 kilogrammes au moins. Les primes seront en outre plus ou moins fortes suivant la qualité de l'indigo.

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(c) Page 3

Figure A6: Extract from the 1813 *Raccolta di Leggi, Decreti, Proclami, Manifesti, Ec.* (Torino, 1813) (conclusion)

English translation of extract (Google Translate):

Gentlemen, literary property rights are guaranteed by special laws, the provisions of which I believe I must remind you. Art. 3 of the law of January 13, 1791 is worded as follows: "The works of living authors may not be performed in any public theater without the formal written consent of the authors, under penalty of confiscation of the total proceeds of the performances, for the benefit of the authors."

Appendix B — Data Issues

B.1 Non-identifiable operas

GM2020 report no state-year observations in the 1781-1820 range they study as containing no new operas from Italian-born composers. Overall, there are 46 state-years for which I cannot find any operas that were premiered by Italian-born composers.

Table B1: GM2020 Operas I cannot identify

Year	State
1781	Modena
1787	Modena
1788	Modena
1788	Parma
1789	Modena
1789	Parma
1790	Modena
1791	Modena
1792	Modena
1793	Modena
1795	Modena
1795	Parma
1795	Sardinia
1796	Modena
1797	Modena
1799	Modena
1800	Modena
1801	Modena
1803	Modena
1803	Parma
1804	Modena
1805	Modena
1805	Parma
1806	Modena
1806	Parma
1807	Modena
1807	Parma
1807	Sardinia
1808	Modena
1809	Modena
1810	Modena
1810	Parma
1811	Modena
1812	Modena

Year	State
1813	Modena
1814	Modena
1815	Modena
1816	Modena
1816	Parma
1817	Modena
1817	Parma
1818	Parma
1819	Modena
1819	Parma
1820	Parma
1820	Tuscany

B.2 Notable performances as classified by Loewenberg (1978)

Loewenberg (1978) lists operas chronologically, by date of premiere. It names the opera, the composer, the city, and the venue the opera was premiered. Additionally, it lists cities and years in which the opera was also shown in following seasons, but it does not contain information on the count of how many times each opera was performed. I perform OCR on the book, and then filter for performances by Italian-born composers and premieres in Italy. Further, I verify and check the output.

GM2020 correctly represent what Loewenberg lists for three years, 1797, 1798, 1800. For all other years, either the number of operas premiered in Lombardy and Venetia, or the number of operas premiered in other states does not match, or both.

Below I show the entry for 1783, found on pages 401-407. GM2020 report no operas recorded in Loewenberg for this year. I highlight the 7 operas named that were performed in Italy, by Italian-born composers, namely: “*Il Conte di Bell’Umore*” by Bernardini in Rome, “*Chi dell’altrui si veste, presto si spoglia*” by Cimarosa in Naples, “*I due Baroni di Rocca Azzurra*” by Cimarosa in Rome, “*La Quakera spiritosa*” by Gugliemi in Naples, “*Lo Sposo di tre, Marito di Nessuna*” by Cherubini in Venice, “*La Villanella rapita*” by Bianchi in Venice, and “*Gli Amanti alla Prova*” by Caruso in Venice.

1782-73	ANNALS OF OPERA	1783	1783	ANNALS OF OPERA	1784
Successful also on German stages: Schwedt 25 September 1786; Berlin 25 April 1787 (in concert form); Hanover 4 June 1788; Pressburg 1788, etc. To the list of German productions as given by Engländer in his monograph on Naumann may be added performances at Winterthur 18 November 1786 (in concert form) and Aachen 31 July 1791. In Danish (translated by T. Thaarup), Copenhagen 30 January 1788; previously given there in concert form 1784.		CIMAROSA: Chi dell'altri si veste, presto si spoglia* <i>Carnival: Naples, Rome</i> Text by G. Palomba. Three acts. Successful in Italy; Milan, Sc. Autumn 1784, etc. In Italian also produced at Esterháza 1786; Madrid 23 December 1787; Dresden 1789; Barcelona 9 December 1789; London 7 January 1790 (as <i>Ninetta</i> , with additional music by F. Giardini); Lisbon 1792; St. Petersburg 30 May 1798; Gochina 11 September 1798; Cagliari, Sardinia Carnival 1804. Revived at Rome, T. Valle Summer 1813 (reduced to 2 acts); Naples, T.N. April 1825 (as <i>Nina e Mariù</i>), reduced to one act).		until about 1812. Libretto published 1783; parts of the music are preserved. In Italian, perhaps Florence, P. 9 April 1792 (see note on Mozart's <i>Don Giovanni</i> , col.454).	Bay, Jamaica 9 April 1785; New York 2 December 1785 (8 times within six months); Philadelphia 23 January 1787; Calcutta 1 May 1788. In English also, Hamburg 9 March 1795 (where a short-lived English theatre, under the management of one Williamson from Edinburgh, existed in that year). Revived in London, C.G. 20 September 1809 and D.L. 19 February 1816. A sequel to <i>The poor Soldier</i> by the same authors (<i>Patrick in Prussia; or, Love in a Camp</i>) was produced in London, C.G. 17 February 1786 (revived D.L. 15 February 1814); both Edinburgh and New York 9 April 1787; Philadelphia 5 July 1787, etc. The music consists of Irish airs, selected by O'Keefe; overture, accompaniments and additional airs by Shield. The original version does not seem to have been preserved (although, according to the play-bill, at least the words of the songs were printed). The music of <i>The poor Soldier</i> was published probably in 1783 (1782 according to the British Museum Catalogue, which seems unlikely). Date of first performance of <i>The Shawwk</i> , 7 April 1783 (not May 7 as stated by W. J. Lawrence in <i>The Musical Antiquary</i> , Vol. iv, p.183).
CARVALHO: Penelope nella Partenza da Sparta* 17 December. Lisbon, Real Camara (Italian) text by G. Martinielli. One act and li-cetta. Performed on the birthday of Queen Maria I. One of the best works of the Portuguese composer.		CIMAROSA: I due Baroni di Rocca Ascura <i>February: Rome, Valle</i> Text by G. Palomba. Two acts. Successful in Italy; Milan, Sc. Spring 1786, etc. Revived Modena 11 May 1804 as <i>La Spina in Contino</i> . In Italian also given at Esterháza 1787; Barcelona 27 June 1789; St. Petersburg 1789 (7); Vienna 6 September 1789; Dresden 1790; Lisbon Carnival 1791; Warsaw 1 September 1792; Corfu, Autumn 1793; Paris 14 July 1804 (with additions by Fioravanti); London 1 January 1803. For the Vienna production Mozart wrote the aria K.578 (<i>Alma grande e nobil Cor</i>).		DÉZÈRE: Blaise et Babet ou La Suite des trois Fermiers 4 April. Versailles Text by J. M. Boust de Murel (a sequel to his <i>Les trois Fermiers</i> , see 1777). Two acts. Paris, C.L. 30 June 1783; given at the O.C. until 1827. In French also, Stockholm 1784; Casel 23 October 1784; Liège 23 November 1784; St. Petersburg, Ermitage 22 January 1792; Charleston, S.C. 23 July 1794; Brussels 9 March 1795; Hamburg 1 June 1795; Cologne 1795-96; Baltimore March 1796; Philadelphia 7 January 1797; Port Louis, Mauritius 19 July 1797 (first opera ever given there); Hanover 28 December 1801. In German (as <i>Blaise und Babet</i>), Karlsruhe 14 April 1787; (as <i>Tiffel und Davidson</i> , translated by H. von Mayer), Mannheim 10 August 1788; Hamburg 13 October 1788, etc.; Amsterdam 1790; Berlin 9 September 1797. Last revived Hamburg 16 January 1814. In Danish (translated by H. J. Roulland), Amsterdam 1788 (revived Hague 1808). In Danish (translated by J. H. Wessel), Copenhagen 18 May 1790. In Swedish (translated by C. J. Lindegren), Stockholm 20 November 1797. In Russian, Moscow 1804. Italian translation by G. Piazza published 1801.	SCHUBAUR: Die Dorfleutertien 8 May. Munich G. E. Heermann's text (first set to music by E. W. Wolf, see 1772). Three acts. The only Singspiel of Schubaur the score of which is still extant. Very successful on German stages; given until 1813; Mannheim 19 November 1783, etc.; Salzburg 17 April 1785; Riga 23 August 1785; Budapest 26 March 1787; Pressburg 1788; Amsterdam 1791; Berlin 23 September 1796; Halle 5 March 1809.
SHIELD: Rosina* 31 December. London, C.G. Text by F. Brooke (founded on Favart's <i>Les Mémoires</i> , see 1768). Two acts. Popular ballad opera; Dublin 18 March 1783; Edinburgh 24 January 1784; Belfast 1784; Montego Bay, Jamaica 23 April 1785; New York 19 April 1786; Philadelphia 19 January 1787, etc. Revived in London until 1831, and again on 12 January 1923 by the Mayfair Dramatic Club at the Guildhall School of Music.		ALBERTINI: Don Juan, albo Ukranij Libertyn 23 February. Warsaw Text by W. Boguslawski (translated from an Italian libretto). Three acts. Polish: <i>Don Giovanni</i> opera, four years before Mozart; successful in Poland, given at Warsaw * Perhaps the anonymous text <i>Il Cavaliere di Pinea</i> , composed by Righini (see 1773), it being the only three-act version on record. I was unable to see a copy of Boguslawski's libretto.		SHIELD: The Shamrock; or, The Anniversary of St. Patrick 7 April. London, C.G. Text by J. O'Keefe. A pastoral Romance. Two acts. Revived at the same theatre some months later (4 November 1783) in an altered version as <i>The poor Soldier</i> , which proved a great success. Very popular on English stages. Dublin 16 January 1784 and, in a revised version, 1785, Montego	SCHUBAUR: La Quakera spiritosa <i>Summer: Naples, Rome</i> Text by G. Palomba. Three acts. Reduced to 2 acts: Milan, Sc. August 1783. In Italian also produced at Dresden 1785; Esterháza 1787; Vienna 13 August 1790 (text revised by L. da Ponte).
401		402		401	404
(a) Pages 401-402			(b) Pages 403-404		
1783	ANNALS OF OPERA	1783	1783	ANNALS OF OPERA	1784
In German (translated by F. X. Girmk), Pressburg 1788.		A parody <i>Le Marchand d'Esclaves</i> , by J. B. Radet, P. Y. Barré and J. R. Lecouppé de la Rosière, was produced at the C.L. 27 January 1784; another, <i>Les Rémouettes ou La Fête de Bouvaire</i> , at the Variétés Amusantes 2 August 1784. In French also, Geneva 22 June 1783; Charleston, S.C. 3 August 1793; Hamburg 1796; Cologne 1796-97; Liège 15 December 1796; Brunswick 1803; Hanover 14 August 1803; St. Petersburg November 1804; Berne 12 February 1806. In Italian (translated by G. Carpani), Monza Autumn 1795 (with additional music by W. Pichl); Lisbon 14 May 1807 (with one air by A. J. do Rego). In Swedish (translated by J. M. Lannersterna), Stockholm 1 November 1796 (with a prologue by L. Piccini). In German (translated by F. X. Huber), Vienna, W. 4 October 1804; Brinn 16 March 1812. In Russian (translated by I. F. Timkovsky), Moscow 28 November 1816; St. Petersburg 17 November 1817. A Dutch version by P. Pijpers was published in 1788.		<i>rapido</i> ; Vienna 25 November 1783; Esterháza 1786; Barcelona 27 April 1787; Madrid 29 April 1788; Paris, Th. de M. 15 June 1789 (pasticcio); revived 18 February 1802; London 27 February 1790; St. Petersburg 1792; Lisbon Spring 1796. In French (translated by P. U. Dubuisson), Paris, Th. Français Comique et Lyrique Summer 1790. In Swedish (translated by G. G. Adlerberth), Stockholm 24 July 1802 (pasticcio). In Russian (translated by A. I. Sheller), St. Petersburg 16 December 1816. In German, Budapest 1 February 1792. In Vienna, Bianchi's opera was performed with two inserted pieces by Mozart, a quartet and a trio (K. 479, 480). Mozart's additions were also used in Paris, London, Madrid and St. Petersburg, and, probably, elsewhere as well.	1784 P. GUGLIELMI: La Viende d'Amore <i>Carnival: Rome, Valle</i> Libretto unknown. Two acts. In Italian also, Vienna 16 June 1784; Prague Autumn 1784; Dresden 1785; Lübeck July 1787; Brunswick Carnival 1791. In German (as <i>Der verliebte Zerst</i>), translated by G. F. W. Grossmann), Casel 2 April 1791; Hanover 4 May 1791.
PICCINI: Didon* 16 October. Fontainebleau Text by J. F. Marmontel. Three acts. The most successful of Piccini's French operas; publicly performed at Paris, O. 1 December 1783 (given there until 1836; the 150th performance was on 8 February 1828); Lille 27 June 1790. In French also, Copenhagen 20 April 1794 (in concert form); Rheims 4 October 1795; Hamburg 1796; Liège 20 February 1802; St. Petersburg 1804; Stockholm 2 April 1805; Antwerp 19 January 1819. In German (translated by H. G. Schmiedel), Mayence 12 February 1793 and Frankfurt 15 April 1793; (translated by C. A. Herklott), Berlin 18 March 1790; Breslau 13 August 1800; revived Berlin 6 November 1807 (with ballet music by B. A. Weber), Darmstadt 25 December 1825. At Solothurn 1794 adapted to a German libretto <i>Das stehende Christentum</i> .		MARTINI: Le Droit du Seigneur 17 October. Fontainebleau Text by F. G. Desfontaines and Laval. Three acts. Paris, C.L. 20 December 1783. In French also, Amsterdam 1784; Casel 9 March 1785; Liège 21 February 1786; Hamburg 1792-96. In German (translation by B. C. d'Ariès), Casel 25 August 1787; Hamburg 13 March 1789; Berlin 16 October 1790, etc. In Swedish (translated by J. D. Valerius), Stockholm 6 June 1790. A Danish version by A. G. Thorup was published in 1790.		ZANDER: Nings spar och Fan tar, eller Aldarnes Dårskaper 17 February. Stockholm Text by C. Envallson (partly founded on Plautus's <i>Menelaus</i>). Two acts. The proverbial title means <i>The Niggard Saves, the Devil Takes, or The Follies of Old Age</i> . Zander's best comic opera, given at Stockholm 40 times until 1819 (revived 14 September 1850). Given at Gothenburg 21 February 1792; at Malmö 6 December 1805.	HAYDN: Armida* 26 February. Esterháza Text by J. Duranti (first set to music by Anfossi in 1770), after Tasso. Three acts. Duranti's authorship has been doubted by some authorities; but see G. de Gregory, <i>Vita di Jacopo Duranti</i> (1817), p.241: "... per il nuovo dramma del carnevale del 1790, ad egli replicò istante, e compose l'Armida, dramma con musica del maestro Anfossi, stampato in Torino nel 1770 e quindi ristampato nel 1805, epoca in cui fu di nuovo rappresentato, ed a consolazione del nostro porta venne dall'armonico Haydn messo per la seconda volta in musica, e dal pubblico Torinese applaudito". Haydn's last performed opera; on his <i>L'Amante des Filles</i> , libretto by C. F. Balin, written for London in 1791, but not performed; see H. Botstein, pp.340-45; autograph score Berlin; a selection was published in 1805 (vocal score) and 1807
405		406		407	408
(c) Pages 405-406			(d) Pages 407-408		

Figure B1: Excerpt from Loewenberg, *Annals of Opera*, 1783 (pages 401-408)

Occasionally, GM2020 report more operas than Loewenberg lists, for example the entries for the year 1816. GM2020 report 2 operas in Venetia, whereas Loewenberg only lists one: *I Baccanti di Roma* by Generali.

1815	ANNALS OF OPERA	1815-16
1820; Paris 10 March 1822; Vienna, Kk. 30 May 1822; Odessa 1830; Mexico 1834. In German, Vienna, W. 3 September 1818; Brünn 19 October 1818; Frankfurt January 1819; Budapest 1 March 1819; Amsterdam Summer 1819; Graz 29 November 1819; Berlin 4 June 1824. Last recorded production, Würzburg 18 March 1841. In Russian (translated by A. I. Steller), St. Petersburg 27 April 1820. Overture and finale of this opera were taken from <i>Aureliano in Palmira</i> (1813).	ROSSINI: <i>Torvaldo e Dorliska</i> <i>26 December</i> . Rome, Valle Text by C. Sterbini. Two acts. Given in Italy until 1840. Outside Italy: Barcelona 10 May 1818; Munich February 1820; Lisbon 7 August 1820; Paris 21 November 1820; Moscow 19 November 1825; St. Petersburg Spring 1829; Mexico 12 September 1831; Malta 1837; Ajaccio, Corsica December 1840; Oran, Algeria Autumn 1842. In German (translated by F. von Biedenfeld), Vienna, W. 20 August 1821; Budapest 3 December 1821; Graz 4 December 1821; Prague 18 February 1821; Frankfurt August 1824; Berlin, Kgt. 17 January 1829. In Spanish, Madrid 23 June 1824.	
CAVOS: <i>Ivan Susanin</i> Иванъ Сусанинъ 31 October. St. Petersburg Text by Prince A. A. Shukhovskoy. Two acts. Moscow 14 January 1822. Revived at St. Petersburg in 1825. Cavos's best work; regarded for 20 years as a model of Russian national opera. When it was replaced in 1836 by Glinka's <i>Life for the Czar</i> (dealing with the same subject) Cavos said (according to Y. K. Arnold): "Les vœux doivent toujours céder la place aux plus jeunes. E poi—la sua musica è effettivamente migliore della mia, e tanto più che dimostra un carattere veramente nazionale".	1816 GENERALI: <i>I Baccanti di Roma</i> <i>14 January</i> . Venice, F. Text by G. Rossi. Two acts. Milan, Sc. 29 January 1825, etc. Mostly given as <i>I Baccanti di Roma</i> . In Italian also, Trieste Spring 1816; Lisbon September 1831; Corda Carnival 1827; Prague 12 July 1827; Barcelona 10 November 1827; Havana Carnival 1840. Performed as an oratorio, Ozeia, Florence 14 February 1836. In German, Munich 23 March 1817; Darmstadt 25 August 1818; Vienna, W. 12 June 1820; Budapest 20 January 1823.	
BOCHSA: <i>La Lettre de Change</i> 11 December. Paris, O.C. Text by F. A. E. de Hérault. One act. Bochsa's most successful work. Given in Paris until 1827. In French also, Brussels 23 November 1816 (revived 23 February 1848); Bene 18 January 1819; Vienna 29 July 1826; New York 20 July 1827. Revived as late as 1867-68 at Ghent. In German, Vienna 10 April 1819. In English, London, Ly. 29 June 1820 and Dublin 6 February 1821 (as <i>The Promissory Note</i> , translated by S. Beazley). In Russian, St. Petersburg 30 September 1824.	WEYSE: <i>Lullans Hule</i> (The Cave of Adullam) 30 January. Copenhagen Text by A. G. Oehlenschläger. Four acts. Given at Copenhagen until 1866. An anonymous German translation was published in 1816.	
641	642	

1816	ANNALS OF OPERA	1816
BUDAPEST 27 October 1827 (in Hungarian; earlier given there in German); October 1847 (in Italian). BUDAPEST 1818 (in Italian). SANTIAGO, CHILE Summer 1830 (in Italian). BERNE 27 July 1830 (in Italian); Geneva 16 November 1831 (in French); Lugano 1832 (in Italian); Basle 28 November 1834 (in German). CAGLIARI, SARDINIA Carnival 1832 (in Italian). COMU Autumn 1833 (in Italian). BASTIA, CORSICA Autumn 1833 (in Italian). BUCAREST 20 February 1834 (in German); Autumn 1843 (in Italian); October 1922 (in Rumanian). ATHENS August 1837 (in Italian; first Italian opera there). HELSINKI Summer 1839 (in German) and 29 September 1874 (in Finnish, translated by A. Törmöcos). ALGERIA Carnival 1840 (in Italian). CONSTANTINOPLE December 1841 (in Italian). GUAYAQUIL, ECUADOR Spring 1843 (in Italian). MALTA 1842 (in Italian). ORIENT 19 May 1844 (in Flemish). TRINIDAD Autumn 1844 (in Italian). BARIA, BRAZIL June 1843 (in Italian). RIO DE JANEIRO Autumn 1846 (in French) and about the same time in Italian). SMYRNA Autumn 1847 (in Italian). CHRISTIANIA (OSLO) August 1849 (in Italian) and 3 May 1913 (in Norwegian). MELBOURNE 1856 (in English, translated by J. W. Mould). BOGOTÁ, COLOMBIA 18 July 1858 (in Spanish). PORT LOUIS, MAURITIUS 1 October 1860 (in French). BATAVIA 11 September 1863 (in French). QUÉBEC 10 June 1864 (in Italian); see F. E. O. Monck, <i>My Canadian Lover</i> , p.31. CAIRO December 1869 (in Italian). ZAGREB 2 December 1874 (in Croatian, translated by A. M. Bilčan). CAPE TOWN 1875 (in Italian). TRIPS 1876 (in Italian). KIEV 1876 (in Russian, translated by P. I. Kalabnikov).	LIJUBIČKA 1905 (in Slovenian). SHANGHAI 1918 (in Russian). BELGRADE 1920 (in Serbian). SOVA 29 December 1922 (in Bulgarian). TALLINN 1923 (in Estonian). KAUNAS 12 April 1924 (in Lithuanian). JERUSALEM 23 February 1927 (in Hebrew, translated by M. Friedmann). RAKAT, MOROCCO May 1935 (in French). BOILEDIEU: <i>La Fête du Village voisin</i> 5 March. Paris, O.C. Text by C. A. B. Sewin. Three acts. Very successful in Paris; last revived at the F.P. 11 November 1868; at the O.C. 15 January 1877; at the Galerie Vivienne 16 December 1895. In French also, Ghent 11 July 1816; Brussels 27 December 1816 (revived 6 January 1831); Bene 6 March 1819; New York 16 July 1827; Florence April 1839 (by amateurs at Prince Poniatowsky's). In German, Vienna 5 May 1817 (translated by I. F. Castelli); Berlin 28 October 1817 (translated by May); Budapest 10 May 1819. In Russian (translated by D. N. Barkov), St. Petersburg 9 March 1818. In Danish (translated by N. T. Bruun), Copenhagen 7 September 1821. ISOUARD: <i>Les deux Maris</i> 18 March. Paris, O.C. Text by C. G. Etienne. One act. In French also, Ghent 9 June 1816, etc. In German (translated by I. F. Castelli), Berlin 8 January 1819; Vienna 30 July 1819. SCHALL: <i>De tre Galigner eller Kunster og Munterhed</i> 19 March. Copenhagen Text by N. T. Bruun (founded on a French play by J. H. F. Le Maréchal, <i>Les trois Espiègles, ou Les Arts de la Folie</i>). Two acts. Schall's last opera.	
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1816	ANNALS OF OPERA	1816
ROSSINI: <i>Almaviva o sia L'Inutile Precauzione</i> <i>10 January</i> . Rome, Arg. Text by C. Sterbini (founded on Beaumarchais's <i>Le Barbier de Séville</i>). Two acts. The title, <i>Il Barbire di Siviglia</i> , was first used at the T. Contavalli, Bologna 10 August 1816. First produced at Rome 20 February 1816 (not 26 December 1816 as stated by Stendhal, nor 5 February 1816 as most books of reference have it). See for further details, <i>Music and Letters</i> , Vol. XX, no.2 (April 1939). Outside Italy, given at: LONDON, no. 10 March 1818 (not 27 January 1818, in Italian) and C.G. 13 October 1818 (in English, translated by J. Fawcett and D. Terry, music arranged by Bishop). BARCELONA 16 July 1818 (in Italian). MUNICH 1 January 1819 (in Italian). LISBON Carnival 1819 (in Italian). NEW YORK 3 May 1819 (in English; most probably the C.G. version); 29 November 1825 (in Italian, at the opening of Garcia's first American season; first Italian opera ever given in New York); 19 October 1831 (in French); and 4 December 1863 (in German). GRATZ 27 May 1819 (for the first time in German, translated by I. C. Kollmann). VIENNA, W. 28 September 1819 (in German); Kk. 16 December 1820 (in German) and 14 April 1823 (in Italian). PARIS, TH. L. 26 October 1819 (in Italian; this date is unanimously given by all authorities while the printed libretto has the date of 23 September 1819); in Castil-Blaz's French version (see below, under Lyons) produced at the Odéon 6 May 1824; T.L. 28 September 1831; Adolphe 3 November 1871; O.C. 8 November 1884. PRAGUE 29 September 1820 (in German); 2 February 1825 (in Czech, translated by S. K. Macháček); and 5 July 1825 (in Italian). BRUNSWICK 1 October 1820 (for the first time in Northern Germany). BRUNN 18 December 1820 (in German).	ROSSINI: <i>Almaviva o sia L'Inutile Precauzione</i> <i>10 January</i> . Rome, Arg. Text by C. Sterbini (founded on Beaumarchais's <i>Le Barbier de Séville</i>). Two acts. The title, <i>Il Barbire di Siviglia</i> , was first used at the T. Contavalli, Bologna 10 August 1816. First produced at Rome 20 February 1816 (not 26 December 1816 as stated by Stendhal, nor 5 February 1816 as most books of reference have it). See for further details, <i>Music and Letters</i> , Vol. XX, no.2 (April 1939). Outside Italy, given at: LONDON, no. 10 March 1818 (not 27 January 1818, in Italian) and C.G. 13 October 1818 (in English, translated by J. Fawcett and D. Terry, music arranged by Bishop). BARCELONA 16 July 1818 (in Italian). MUNICH 1 January 1819 (in Italian). LISBON Carnival 1819 (in Italian). NEW YORK 3 May 1819 (in English; most probably the C.G. version); 29 November 1825 (in Italian, at the opening of Garcia's first American season; first Italian opera ever given in New York); 19 October 1831 (in French); and 4 December 1863 (in German). GRATZ 27 May 1819 (for the first time in German, translated by I. C. Kollmann). VIENNA, W. 28 September 1819 (in German); Kk. 16 December 1820 (in German) and 14 April 1823 (in Italian). PARIS, TH. L. 26 October 1819 (in Italian; this date is unanimously given by all authorities while the printed libretto has the date of 23 September 1819); in Castil-Blaz's French version (see below, under Lyons) produced at the Odéon 6 May 1824; T.L. 28 September 1831; Adolphe 3 November 1871; O.C. 8 November 1884. PRAGUE 29 September 1820 (in German); 2 February 1825 (in Czech, translated by S. K. Macháček); and 5 July 1825 (in Italian). BRUNSWICK 1 October 1820 (for the first time in Northern Germany). BRUNN 18 December 1820 (in German).	KRONSTADT and HERMANNSTADT May 1821 (in Italian). MADRID 25 August 1821 (in Italian) and 1 October 1824 (in Spanish). ODENSA 31 August 1821 (in Italian). LYONS 19 September 1821 (for the first time in French, translated by F. H. J. Castil-Blaz; "d'après Beaumarchais et le drame italien, paroles ajustées sur la musique de Rossini"). BRUSSELS 5 October 1821 (in French). MARSEILLES 18 December 1821 (in French). DRESEN 7 January 1822 (in English) and 14 October 1829 (in Italian). PHILADELPHIA 1 March 1822; Baltimore 20 May 1822, etc. (in English). BERLIN, O. 18 June 1822 (in German; given there more than 500 times until 1937) and Kgt. 8 May 1845 (in Italian). ROTTERDAM 1822 (in French). STRAßBURG 1822 (in French). COPENHAGEN 14 September 1822 (in Danish, translated by T. Thaarup) and 10 May 1825 (in German); given in a new Danish version by N. C. L. Abrahams 4 March 1846. ST. PETERSBURG 9 December 1822 (in Russian, translated by K. M. Zastov); 1833 (in German); 29 January 1839 (in Russian); revived Leningrad 6 March 1918. BOGA 1823 (in German) and 11 February 1922 (in Lettish, translated by P. Lick). AMSTERDAM October 1823 (in German); Spring 1825 (in Dutch); 1834 (in French). EDINBURGH 21 June 1824 (in English) and 13 December 1827 (in Italian). PRESSBURG 14 April 1825 (in German). BUENOS AIRES 3 October 1825 (in Italian; first Italian opera ever given there). STOCKHOLM 23 October 1825 (in Swedish, translated by B. H. Cronell) and 1828 (in Italian). WARSAW 29 October 1825 (in Polish, translated by W. Boguslawski) and Summer 1843 (in Polish). WILNA 6 November 1827 (in Polish). MEXICO 23 February 1826 (in Spanish) and 29 June 1827 (in Italian). CLAUSENBURG 3 February 1827 (in Hungarian, translated by J. Szerdahelyi).
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1810	ANNALS OF OPERA	1816
LEBRUN: <i>Le Rossignol</i> 23 April. Paris, O. Text by C. G. Etienne. One act. Very successful on French stages; given in Paris until 1824 (100th performance 30 June 1820); Brussels 15 November 1816 (revived 20 December 1845); given at Ghent until 1872. In French also, New York 26 August 1823; London, D.L. 18 July 1846. In English, London, Princess's Th. 24 April 1848 (music adapted by Loder). This opera was famous for its flute solos ("Le Rossignol" played by the virtuoso, Jean Louis Talon. It was during a performance of <i>Le Rossignol</i> (11 February 1820) that the Duke of Berry was assassinated at the Opéra. CARAFI: <i>Gabriella di Vergy</i> 19 July. Naples, Fendi Text by A. L. Tostola. Two acts. The best of Carafi's Italian operas. Outside Italy, given at Vienna 1 April 1824 and Barcelona 7 September 1829. HOFFMANN: <i>Undine</i> * 5 August. Berlin, Sch. Text by F. de La Motte Fouqué (founded on his own tale of the same title). Three acts. The chief musical work of the German novelist and composer; given in Berlin 14 times until 27 July 1817 when the destruction of the theatre by fire interrupted the course of performances. Apart from a production at Prague in Spring 1821, which was a complete failure, Hoffmann's opera was not revived until a hundred years later, at Aachen 30 June 1922 (libretto revised by H. von Wolzogen); Bamberg 24 January 1926; and again Leipzig 14 October 1933. The vocal score was first published in 1908 (edited by H. Pfitzner). See on <i>Undine</i> , C. M. von Weber's article in A.M.Z., March 10, 1817. (For a new setting of Fouqué's libretto, see 1845; for Lortzing's opera on the same subject, see 1846).	SPOHR: <i>Faust</i> * 1 September. Prague Text by J. K. Bernard. Two acts. Apart from <i>Jenoufa</i> , Spohr's chief work. It had been written for the Theater an der Wien, Vienna (where Spohr was conductor from 1813-16) but was not given there before 1818 (only the overture was played at a Vienna concert on 11 December 1814). After Prague (where Weber conducted the first performance), <i>Faust</i> was given at Frankfurt 15 March 1818; Vienna, W. 7 July 1818 (Kk. 7 August 1827); Budapest 19 November 1821; Königsberg 1825; Munich 1826; Berlin 14 November 1829. In German also, Paris, TH. L. 20 April 1830; Amsterdam 1842; St. Petersburg December 1839; London, Prince's Th. 21 May 1840. In Czech (translated by S. K. Macháček), Prague 2 February 1833. In French (translated by Clérissieu and D. E. de Groof), Marseilles 10 March 1837. In Italian (translated by S. M. Maggioni), London, C.G. 12 July 1852; this new version, for which the composer had added recitatives, was then produced in German at Munich 12 June 1853; Canal 8 April 1854; Carlsruhe 1 March 1860; Dresden 5 October 1862. English vocal score (translated by J. W. Mould) published 1852. The opera was revived at Brunswick 10 April 1931 (revived by W. Kleefeld). MÉHUL: <i>La Journée aux Aventures</i> 16 November. Paris, O.C. Text by P. A. Capelle and L. Mémoires-Miot. Three acts. In Paris given until 1825; in French also, Liège 24 March 1817; Antwerp 23 March 1817; Brussels 27 November 1817; Bene 15 March 1819, etc. In German (translated by T. Hell), Breslau September 1817; Vienna 11 April 1818; Hamburg 26 July 1826; Berlin 9 December 1829. In Russian, St. Petersburg 31 May 1819; Moscow 3 February 1820.	
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1816	ANNALS OF OPERA	1816-17
In Danish (translated by C. J. Boye), Copenhagen 7 September 1824.		BUENOS AIRES 22 August 1827 (in Italian). WARSAW 14 June 1828 (in Polish, translated by D. Minałowicz) and Summer 1843 (in Italian). ST. PETERSBURG February 1829 (in Italian), 1835 (in German) and 26 October 1866 (in Russian). EDINBURGH 11 December 1832 (in Italian). RUGHARIST 28 February 1834 (in German). DURIN 23 September 1834 (in Italian). BALE 12 October 1835 (in German). BRUSSELS 6 March 1839 (new French version by J. Lecomte and C. Boncelet). AJACCIO, CORSICA Carnival 1840 (in Italian). COPENHAGEN Summer 1841 (in German) and November 1841 (in Italian). HELSINKI 17 October 1841 (in German). TRINIDAD Autumn 1844 (in Italian). PARIS, O. 2 September 1844 (in a third French version by A. Royer and G. Vaër). BRUSSELS 23 December 1846 (French version by A. Royer and G. Vaër). NEW ORLEANS February 1848. RIO DE JANEIRO 6 August 1855 (in Italian). GOTHENBURG 28 April 1862 (in German). VALPARAISO 1868 (in Italian). There were revivals (in Italian) at Cairo 2 November 1876; Madrid 26 February 1878; Vienna 29 April 1878; Berlin, Kroll's 26 October 1878; Rome, C. 19 December 1880. Seven years later (1887) Verdi's <i>Otello</i> came out and Rossini's opera fell into oblivion altogether, apart from two German revivals of the older opera at Prague 3 June 1889 and Berlin, Kroll's 26 August 1889.
ROSSINI: <i>Otello ossia Il Moro di Venezia</i> 4 December, Naples, Fondo Text by Marchese F. Berio di Sala (after Shakespeare). Three acts. Very successful in and outside Italy. First produced at: MUNICH 13 September 1818 (in Italian) and 1821 (in German). VIENNA, W. 19 January 1819 (in German, translated by F. von Bodenfeldt); Kl. 29 April 1819 (in German, translated by J. C. Grünbaum) and 13 March 1821 (in Italian). PRAGUE 25 April 1819 (in German) and 30 November 1825 (in Czech, translated by S. K. Macháček). GRAZ 3 November 1819 (in German). BUDAPEST 1819 (in German) and 19 November 1827 (in Hungarian). TIBORN 1820 (in Italian). LEIPZIG 21 March 1820 (in German, Grünbaum's translation). FRANKFURT 9 April 1820 (in German, Grünbaum's translation). BERLIN, O. 16 January 1821 (in German) and Kgm. 15 October 1841 (in Italian). BARCELONA 10 May 1821 (in Italian). PARIS, TH. L. 5 June 1821 (in Italian); for productions in French, see below. LONDON, HM. 16 May 1822 (in Italian) and Princess's 21 March 1844 (in English, translated by G. Swayne). BOGA 1822 (in German). AMSTERDAM 1 November 1823 (in German); 1835 (in French); Autumn 1844 (in Italian). LYONS 1 December 1823 (in French, translated by F. H. J. Castil-Blaze). BRUSSELS 23 March 1824 (in French, translated by F. H. J. Castil-Blaze). PARIS, ODON 25 July 1825 (in French, translated by F. H. J. Castil-Blaze). NEW YORK 7 February 1826 (in Italian). MEXICO 22 January 1827 (in Spanish).		1817 P. C. GUGLIELMI: <i>Paolo e Virginia</i> 2 January. Naples, Fior. Text by G. M. Diodati (founded on Saint-Pierre's story). Three acts. The last and most successful of the 42 operas of the younger Guglielmi. Last revived in Italy: Milan 3 January 1830 and Naples March 1832.

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Figure B2: Excerpt from Loewenberg, *Annals of Opera*, 1816 (pages 641–650).

Below, I show the full list of the operas included in Loewenberg between the years of 1781 and 1820, premiered in Italy by Italian-born composers. The copyright of Loewenberg (1978) has expired, and the section relating to 1781–1820 can be accessed from my github: [github/Mtsoukis/GM_2020_Comment/Data_Sources/Loewenberg_Annals_1781-1820.pdf](https://github.com/Mtsoukis/GM_2020_Comment/Data_Sources/Loewenberg_Annals_1781-1820.pdf)

Year	State	Opera Name	Composer	City
1781	Papal	Il Pittor Parigino	Cimarosa	Rome
1781	Venetia	Giulio Sabino	Sarti	Venice
1781	Two Sicilies	Montezuma	Zingarelli	Naples
1781	Lombardy	Il Vecchio geloso	Alessandri	Milan
1781	Venetia	Giannina e Bernadone	Cimarosa	Venice
1781	Venetia	Il Convito	Cimarosa	Venice
1782	Two Sicilies	La Ballerina amante	Cimarosa	Naples
1782	Lombardy	Fra due Litiganti il terzo gode	Sarti	Milan
1783	Two Sicilies	Chi dell' altrui si veste presto si spoglia	Cimarosa	Naples
1783	Papal	I due Baroni di Rocca Azzurra	Cimarosa	Rome
1783	Papal	Il Conte di Bell'Umor	Bernardini	Rome
1783	Two Sicilies	La Quakera spiritosa	Guglielmi	Naples
1783	Venetia	Lo Sposo di tre, Marito di Nessuna	Cherubini	Venice
1783	Venetia	La Villanella rapita	Bianchi	Venice

1783	Venetia	Gli Amanti alla Prova	Caruso	Venice
1784	Papal	Le Vicende d'Amore	Guglielmi	Rome
1784	Venetia	L'Olimpiade	Cimarosa	Vicenza
1784	Lombardy	I due supposti Conti ossia Lo Sposo senza Moglie	Cimarosa	Milan
1785	Two Sicilies	La Virtuosa in Mergellina	Guglielmi	Naples
1785	Papal	Li due Castellani Burlati	Fabrizi	Bologna
1785	Venetia	La Moglie capricciosa	Gazzaniga	Venice
1785	Two Sicilies	Enea e Lavinia	Guglielmi	Naples
1786	Lombardy	Ariarate	Tarchi	Milan
1786	Two Sicilies	Le Gare generose	Paisiello	Naples
1786	Two Sicilies	L'Inganno amoroso	Guglielmi	Naples
1786	Two Sicilies	Le Trame deluse	Cimarosa	Naples
1786	Two Sicilies	L'Impresario in Angustie	Cimarosa	Naples
1786	Venetia	Le Gelosie fortunate	Anfossi	Venice
1787	Two Sicilies	Pirro	Paisiello	Naples
1787	Venetia	Don Giovanni Tenorio o sia Il Convitato di Pietra	Gazzaniga	Venice
1787	Two Sicilies	Il Fanatico burlato	Cimarosa	Naples
1787	Two Sicilies	La Modista Raggiratrice	Paisiello	Naples
1788	Sardinia	Ifigenia in Aulide	Cherubini	Turin
1788	Papal	Le Avventure amorose	Tritto	Rome
1788	Two Sicilies	La Pastorella nobile	Guglielmi	Naples
1788	Two Sicilies	L'Amor contrastato	Paisiello	Naples
1789	Lombardy	La Disfatta di Dario	Giordani	Milan
1789	Two Sicilies	Nina o sia La Pazza per Amore	Paisiello	Caserta
1789	Two Sicilies	La bella Pescatrice	Guglielmi	Naples
1789	Two Sicilies	I Zingari in Fiera	Paisiello	Naples
1789	Venetia	Zenobia di Palmira	Anfossi	Venice
1790	Venetia	Pimmaglione	Cimadoro	Venice
1790	Two Sicilies	La Serva innamorata	Guglielmi	Naples
1790	Two Sicilies	La Vendetta di Nino	Bianchi	Naples
1791	Lombardy	La Morte di Semiramide	Borghi	Milan
1791	Venetia	La Morte di Cleopatra	Nasolini	Vicenza
1792	Venetia	I Giuochi d'Agrigento	Paisiello	Venice
1792	Lombardy	Il Mercato di Monfregoso	Zingarelli	Milan
1792	Venetia	Eugenia	Nasolini	Venice

1792	Duchy of Parma	Il Tempo fa Giustizia a tutti	Paer	Parma
1792	Two Sicilies	L'Elfrida	Paisiello	Naples
1793	Two Sicilies	I Traci amanti	Cimarosa	Naples
1794	Tuscany	Gerusalemme distrutta	Zingarelli	Florence
1794	Two Sicilies	Le Astuzie femminili	Cimarosa	Naples
1794	Venetia	La Principessa Filosofo ossia Il Contravveleno	Andreozzi	Venice
1794	Two Sicilies	Penelope	Cimarosa	Naples
1795	Two Sicilies	La Pietra simpatica	Palma	Naples
1795	Papal	I Nemici generosi	Cimarosa	Rome
1795	Venetia	L'Intrigo amoroso	Paer	Venice
1796	Venetia	Merope	Nasolini	Venice
1796	Lombardy	Giulietta e Romeo	Zingarelli	Milan
1796	Venetia	Gli Orazi ed i Curiazi	Cimarosa	Venice
1796	Venetia	Il Furbo contro al Furbo	Fioravanti	Venice
1797	Duchy of Parma	Il Principe di Taranto	Paer	Parma
1798	Duchy of Parma	La Virtù al Cimento	Paer	Parma
1799	Two Sicilies	Le Cantatrici villane	Fioravanti	Naples
1799	Two Sicilies	La finta Filosofo	Spontini	Naples
1801	Venetia	Artemisia	Cimarosa	Venice
1801	Lombardy	I Bacchanali di Roma	Niccolini	Milan
1801	Lombardy	Il Podestà di Chioggia	Orlandi	Milan
1801	Venetia	Teresa e Claudio	Farinelli	Venice
1801	Venetia	Quanti Casi in un Giorno!	Trento	Venice
1802	Lombardy	La Capricciosa pentita	Fioravanti	Milan
1802	Two Sicilies	Gli Americani	Tritto	Naples
1803	Lombardy	La Muta per Amore ossia Il Medico per Forza	Lavigna	Milan
1803	Venetia	Un Avvertimento ai Gelosi	Pavesi	Venice
1803	Lombardy	Zaira	Federici	Milan
1803	Venetia	I Riti d'Efeso	Farinelli	Venice
1804	Venetia	La Burla fortunata ossia I due Prigionieri	Pucitta	Venice
1804	Venetia	Pamela nubile	Generali	Venice
1804	Papal	Filandro e Carolina	Gnecco	Rome
1805	Venetia	La Scelta dello Sposo	Guglielmi	Venice
1805	Papal	Sofonisba	Paer	Bologna
1805	Lombardy	La Prova d'una Opera seria	Gnecco	Milan

1805	Two Sicilies	Amor tutto vince	Guglielmi	Naples
1807	Papal	Guerra aperta ossia Astuzia contro Astuzia	Guglielmi	Rome
1807	Papal	Traiano in Dacia	Niccolini	Rome
1808	Lombardy	La Dama Soldato	Orlandi	Milan
1808	Venetia	Le Lagrime di una Vedova	Generali	Venice
1808	Lombardy	Coriolano	Niccolini	Milan
1809	Duchy of Parma	Agnese di Fitz-Henry	Paer	Parma
1810	Papal	Le Danaïde	Morlacchi	Rome
1810	Venetia	Adelina	Generali	Venice
1810	Lombardy	Ser Marcantonio	Pavesi	Milan
1810	Venetia	La Cambiale di Matrimonio	Rossini	Venice
1811	Lombardy	I Pretendenti delusi	Mosca	Milan
1811	Papal	Berenice, Regina d'Armenia	Zingarelli	Rome
1812	Venetia	L'Inganno felice	Rossini	Venice
1812	Papal	Ciro in Babilonia o sia La Caduta di Baldassarre	Rossini	Ferrara
1812	Venetia	La Scala di Seta	Rossini	Venice
1812	Lombardy	La Pietra del Paragone	Rossini	Milan
1812	Venetia	L'Occasione fa il Ladro	Rossini	Venice
1813	Venetia	Il Signor Bruschino ossia Il Figlio per Azzardo	Rossini	Venice
1813	Venetia	Tancredi	Rossini	Venice
1813	Venetia	L'Italiana in Algeri	Rossini	Venice
1813	Lombardy	Aureliano in Palmira	Rossini	Milan
1814	Lombardy	Il Turco in Italia	Rossini	Milan
1815	Venetia	Clotilda	Coccia	Venice
1815	Two Sicilies	Elisabetta Regina d'Inghilterra	Rossini	Naples
1815	Papal	Torvaldo e Dorliska	Rossini	Rome
1816	Venetia	I Baccanti di Roma	Generali	Venice
1816	Papal	Almaviva o sia L'Inutile Precauzione	Rossini	Rome
1816	Two Sicilies	Gabriella di Vergy	Carafa	Naples
1816	Two Sicilies	Otello ossia Il Moro di Venezia	Rossini	Naples
1817	Two Sicilies	Paolo e Virginia	Guglielmi	Naples
1817	Papal	La Cenerentola ossia La Bontà in Trionfo	Rossini	Rome
1817	Lombardy	La Gazza Ladra	Rossini	Milan
1817	Two Sicilies	Armida	Rossini	Naples

1817	Lombardy	Adelaide e Comingio	Pacini	Milan
1818	Two Sicilies	Mosè in Egitto	Rossini	Naples
1818	Lombardy	Gianni di Parigi	Morlacchi	Milan
1818	Lombardy	Il Barone di Dolsheim	Pacini	Milan
1818	Two Sicilies	Ricciardo e Zoraide	Rossini	Naples
1819	Lombardy	Gl' Illinesi	Basili	Milan
1819	Venetia	Eduardo e Cristina	Rossini	Venice
1819	Two Sicilies	La Donna del Lago	Rossini	Naples
1819	Lombardy	Bianca e Falliero ossia Il Consiglio dei Tre	Rossini	Milan
1820	Sardinia	La Schiava in Bagdad ossia Il Papucciajo	Pacini	Turin
1820	Two Sicilies	Maometto II	Rossini	Naples
1820	Papal	La Gioventù di Enrico V	Pacini	Rome

The list of 69 operas over the 51 observations for which GM2020 report no notable operas:

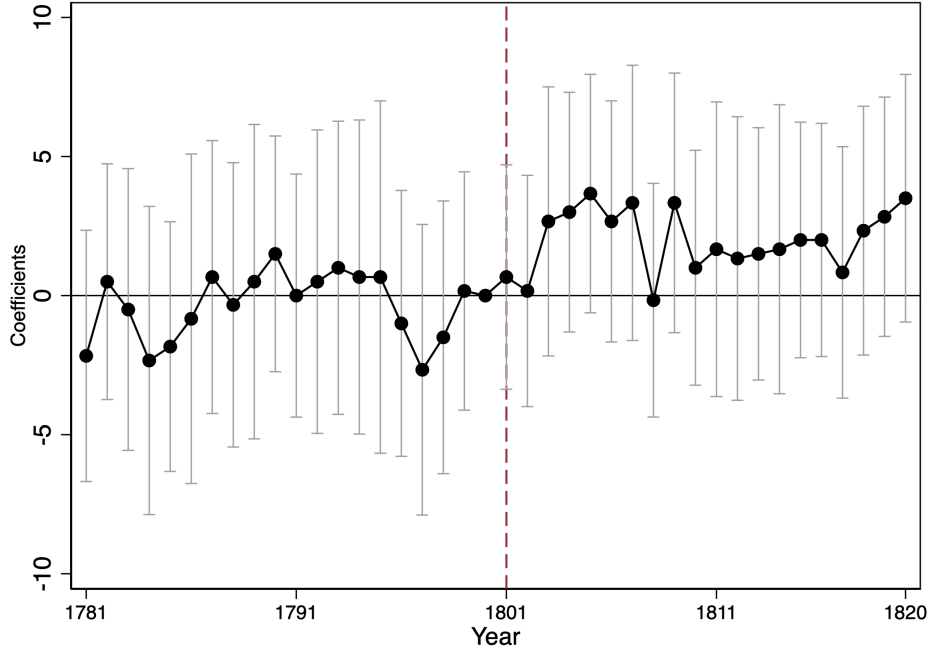
Year	State	Opera Name	Composer	City
Lombardy	1781	Il Vecchio geloso	Alessandri	Milan
Lombardy	1782	Fra due Litiganti il terzo gode	Sarti	Milan
Lombardy	1784	I due supposti Conti ossia Lo Sposo senza Moglie	Cimarosa	Milan
Lombardy	1786	Ariarate	Tarchi	Milan
Lombardy	1789	La Disfatta di Dario	Giordani	Milan
Lombardy	1791	La Morte di Semiramide	Borghi	Milan
Lombardy	1792	Il Mercato di Monfregoso	Zingarelli	Milan
Lombardy	1796	Giulietta e Romeo	Zingarelli	Milan
Lombardy	1803	La Muta per Amore ossia Il Medico per Forza	Lavigna	Milan
Lombardy	1803	Zaira	Federici	Milan
Lombardy	1810	Ser Marcantonio	Pavesi	Milan
Lombardy	1811	I Pretendenti delusi	Mosca	Milan
Lombardy	1812	La Pietra del Paragone	Rossini	Milan
Lombardy	1813	Aureliano in Palmira	Rossini	Milan
Papal	1781	Il Pittor Parigino	Cimarosa	Rome
Papal	1783	I due Baroni di Rocca Azzurra	Cimarosa	Rome
Papal	1783	Il Conte di Bell'Umore	Bernardini	Rome
Papal	1784	Le Vicende d'Amore	P. Guglielmi	Rome
Papal	1785	Li due Castellani Burlati	Fabrizi	Bologna

Papal	1788	Le Avventure amorose	Tritto	Rome
Papal	1804	Filandro e Carolina	Gnecco	Rome
Papal	1811	Berenice, Regina d'Armenia	Zingarelli	Rome
Papal	1812	Ciro in Babilonia o sia La Caduta di Baldassarre	Rossini	Ferrara
Papal	1815	Torvaldo e Dorliska	Rossini	Rome
Parma	1809	Agnese di Fitz-Henry	Paer	Parma
Sardinia	1788	Ifigenia in Aulide	Cherubini	Turin
Toscany	1794	Gerusalemme distrutta	Zingarelli	Florence
Two Sicilies	1781	Montezuma	Zingarelli	Naples
Two Sicilies	1782	La Ballerina amante	Cimarosa	Naples
Two Sicilies	1783	Chi dell' altrui si veste presto si spoglia	Cimarosa	Naples
Two Sicilies	1783	La Quakera spiritosa	P. Guglielmi	Naples
Two Sicilies	1785	Enea e Lavinia	P. Guglielmi	Naples
Two Sicilies	1785	La Virtuosa in Mergellina	P. Guglielmi	Naples
Two Sicilies	1786	L'Impresario in Angustie	Cimarosa	Naples
Two Sicilies	1786	L'Inganno amoroso	P. Guglielmi	Naples
Two Sicilies	1786	Le Gare generose	Paisiello	Naples
Two Sicilies	1786	Le Trame deluse	Cimarosa	Naples
Two Sicilies	1787	Il Fanatico burlato	Cimarosa	Naples
Two Sicilies	1787	La Modista Raggiratrice	Paisiello	Naples
Two Sicilies	1787	Pirro	Paisiello	Naples
Two Sicilies	1788	La Pastorella nobile	P. Guglielmi	Naples
Two Sicilies	1788	L'Amor contrastato	Paisiello	Naples
Two Sicilies	1789	I Zingari in Fiera	Paisiello	Naples
Two Sicilies	1789	La bella Pescatrice	P. Guglielmi	Naples
Two Sicilies	1789	Nina o sia La Pazza per Amore	Paisiello	Caserta
Two Sicilies	1795	La Pietra simpatica	S. Palma	Naples
Two Sicilies	1799	La finta Filosofa	Spontini	Naples
Two Sicilies	1799	Le Cantatrici villane	Val. Fioravanti	Naples
Two Sicilies	1802	Gli Americani	Tritto	Naples
Two Sicilies	1805	Amor tutto vince	Guglielmi	Naples
Venetia	1781	Giannina e Bernadone	Cimarosa	Venice
Venetia	1781	Giulio Sabino	Sarti	Venice
Venetia	1781	Il Convito	Cimarosa	Venice
Venetia	1783	Gli Amanti alla Prova	Caruso	Venice

Venetia	1783	La Villanella rapita	Bianchi	Venice
Venetia	1783	Lo Sposo di tre, Marito di Nessuna	Cherubini	Venice
Venetia	1784	L'Olimpiade	Cimarosa	Vicenza
Venetia	1785	La Moglie capricciosa	Gazzaniga	Venice
Venetia	1786	Le Gelosie fortunate	Anfossi	Venice
Venetia	1787	Don Giovanni Tenorio o sia Il Convitato di Pietra	Gazzaniga	Venice
Venetia	1789	Zenobia di Palmira	Anfossi	Venice
Venetia	1790	Pimmaglione	Cimadoro	Venice
Venetia	1791	La Morte di Cleopatra	Nasolini	Vicenza
Venetia	1792	Eugenia	Nasolini	Venice
Venetia	1792	I Giuochi d'Agrigento	Paisiello	Venice
Venetia	1794	La Principessa Filosofo ossia Il Contravveleno	Andreozzi	Venice
Venetia	1805	La Scelta dello Sposo	Guglielmi	Venice
Venetia	1815	Clotilda	Coccia	Venice
Venetia	1819	Eduardo e Cristina	Rossini	Venice

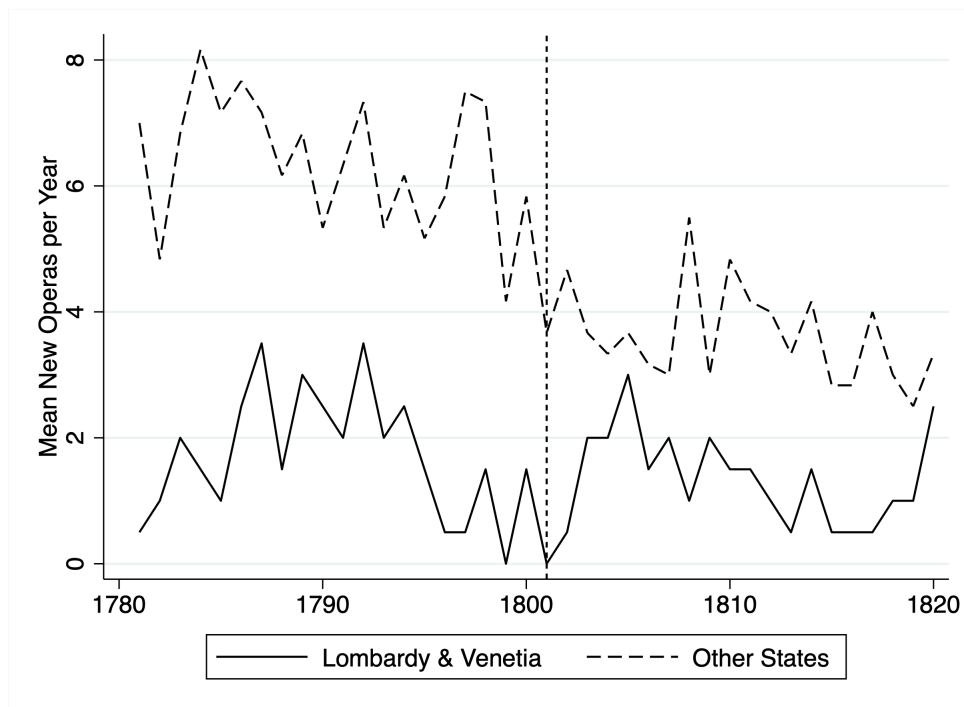
B.3 GM2020 Specifications excluding Milan and Venetia

Figure B3: OLS Annual Estimates on Opera Production (Excluding Milan and Venice)



Notes: The figure plots annual OLS estimates of the effect of copyright adoption in Lombardy and Venetia on the number of new operas premiered per state-year, excluding Milan and Venice. Coefficients represent β_r from the specification $operas_{it} = \beta_0 + \beta_r(\text{Lombardy} \& \text{Venetia}_i \times \text{year}_r) + \phi_i + \delta_r + \varepsilon_{it}$, where 1800 is the reference year. State fixed effects (ϕ_i) account for time-invariant differences across states, and year fixed effects (δ_r) capture common shocks over time. The graph displays point estimates and 95% confidence intervals, using robust standard errors.

Figure B4: Total Opera Production in Treated vs Untreated States, excluding Milan and Venice



Appendix C — Secondary Sources of GM2020

C.1 — Chandler (1966)

I show below page 89 of Chandler (1966), which is cited in support of the claim that other states received the Napoleonic Code, but not copyrights. It discusses the siege of Mantua, and the book generally focuses on Napoleon's military conquests. It can be accessed here: https://www.google.com/books/edition/The_Campaigns_of_Napoleon/hNYWXeVcbkMC?hl=en&gbpv=1

coat is blue with a red collar. . . . As head dress I have seen some with a hat, but most have a leather *casque* with an *aigrette* in soft skin, or a horsetail." The troops' fighting record, however, had already belied these tattered appearances. The priest was amazed "that these men, dying of hunger, generally small, weak, worn out by fatigue and privation, without clothes or shoes—men that one would take for the dregs of a wretched population—should have conquered the Austrian army, which has everything in abundance, food, clothes, guns, magazines of all sorts, and is composed of veterans of great height, robust, and inured to war."¹⁶ That this was the case is a fitting tribute to the Army of Italy and the determination and skill of its young commander.

Bonaparte, however, had little time to savor the fruits of victory. A mere six weeks would see a reinforced Austrian army marching against him, and in the meantime there were many pressing calls upon his time. First of all, the rebellious rear areas had to be made safe. Bonaparte in person led a force back to Tortona, and Lannes marched on Pozzolo and Arquata, leaving desolation in their wake to serve as a reminder of the folly of revolting against the French Republic. Genoa, believed to be implicated in these risings, received a stern visit from Murat, who forced the Senate to dismiss the governor of Gavi and expel certain Neapolitan functionaries suspected of conspiring against French interests.

In the meantime, the problem of reducing Mantua took up a great deal of the commander in chief's attention. Confronted by the fortress, the impetus of the French offensive died away. The impregnability of the stronghold lay in the three lakes that protected its northern and eastern sides, and in the fever-ridden marshes that sealed it off from the south and west. To these were added a complex series of fortifications protected by a number of imposing outworks, the most important being the citadel and Fort St. Georges commanding the Legnano road. An attempt to storm the city by a *coup-de-main* on May 31 failed, and by June 3, Mantua was fully besieged by Sérurier and Augereau assisted by Dallemagne, Lannes and General Kilmaine of the cavalry. On the same day a force of grenadiers succeeded in capturing the St. Georges suburb, an event which seemed to presage a rapid conclusion to the siege. A long series of interruptions were, however, to delay the capitulation of Mantua for more than eight months.

The first of these diversions occurred almost immediately. Mindful of the Directory's desire for the discomfiture of the Holy Father and the looting of the Vatican treasury, Bonaparte almost immediately drew away General Augereau and his division, leaving Sérurier with a depleted force to continue

Figure C1: Page 89 of Chandler (1966)

C.2 — Bassi (2000)

GM2020 quote Bassi (2000) in their appendix, on page 37. I share a screenshot below.

6.1. I provvedimenti che si susseguono nel Lombardo-Veneto appartengono a due periodi nettamente separati. Il primo periodo si identifica con l'occupazione francese, il secondo con il ritorno al potere degli Asburgo.

Per quel che riguarda il periodo francese, la prima legge viene promulgata a Milano il 19 fiorile dell'anno IX, all'epoca cioè della Repubblica Cisalpina.

L'art.1 prevede che "gli autori di scritture d'ogni maniera, i compositori di musica, i pittori, i disegnatori, che faranno incidere quadri, o disegni, godranno per l'intero decorso della loro vita il diritto esclusivo di vendere, far vendere, distribuire le opere loro nel Territorio Cisalpino, e di cederne la proprietà in tutto, o in parte" sancendo in tal modo l'esistenza in capo all'artista di quel diritto che nessun privilegio statale potrebbe far altrimenti sorgere direttamente nella sfera dell'editore.

Con la restaurazione, le leggi francesi perdono vigore, ma la strada delle codificazioni tracciata dal Code Napoléon è ormai aperta e anche l'Impero asburgico ben presto si trova a calcarla, l'ABGB vede la luce nel 1812⁶⁷ e pone l'attenzione anche sul tema della tutela del diritto d'autore⁶⁸.

La patente del 28 settembre 1815 dispone l'entrata in vigore dell'ABGB nel Regno Lombardo-Veneto a decorrere dal 1° gennaio 1816⁷¹.

Sebbene le norme siano state concepite puntando lo sguardo al contratto di edizione a stampa, una norma di chiusura⁷² ne estende l'applicazione anche alle composizioni musicali,

Authors' translation from the Italian:

6.1. The laws in Lombardo-Veneto were passed in two separate periods. The first period coincides with the French occupation, the second with the Habsburg Restoration.

In the French period, the first law was passed in Milan on 19 Fiorile IX (May 9, 1801) in the period of the Cisalpine Republic.

Art.1 provides that "the authors of any type of written works, composers, painters, and designers of carvings and drawings, have, for the duration of their lives, exclusive rights to sell, allow to sell, and distribute their works in the Cisalpine Territory, and to cede this property to someone else, either in part or as whole," thereby establishing the existence of a right for the author that no privilege granted by a government could ensure.

With the Habsburg Restoration, French laws lost their strength, but the path of codifying property rights that had been traced by the Napoleonic Code remained open, and the Habsburg Empire followed it. The Allgemeines Bürgerliches Gesetzbuch (ABGB)¹ came into effect on 1812, and focused attention on the protection of the copyrights for authors.

The decree of September 28, 1815 established that the ABGB would become law in Lombardy and Venetia on January 1, 1816.

Even though these rules had been originally conceived to protect new book editions, an Addendum to the Act extended the provisions to musical compositions.

Source: Bassi (2000), p. 11-13.

Even though a portion of the Venetian Republic, including Venice, was granted to Austria in the Treaty of Luneville, an account of all laws of the Cisalpine Republic (the

¹ The ABGB (*Allgemeines Bürgerliches Gesetzbuch*, General Austrian Civil Code) is Austria's codification of a civil (*Bürgerliches*) law (*Gesetz*). Announced on June 1, 1811, it went into effect for the entire German-speaking realm of the Austro-Hungarian Empire on January 1, 1812 (Rummel, 1991).

Figure C2: Page 37 of the Appendix of GM2020

I outline in blue the last part GM2020 quote. Note that the original Italian screenshot ends with a comma, not a full stop. The translation provided in GM2020 is below:

"Even though these rules had been originally conceived to protect new book editions, an Addendum to the Act extended the provisions to musical compositions."

This sentence, however, is not a faithful representation of Bassi (2000). The image that GM2020 provide is cropped. I attach the full image below, and highlight the full sentence within the paragraph:

STORIA DEL DIRITTO D'AUTORE NEL TEATRO DI TORINO

rivendicare alcuna pretesa sull'opera pubblicata⁶⁹, facendo così proprie, più o meno consapevolmente, le conclusioni prospettate in Francia dal D'HERICOURT e dal DIDEROT⁷⁰.

La patente del 28 settembre 1815 dispone l'entrata in vigore dell'ABGB nel Regno Lombardo-Veneto a decorrere dal 1° gennaio 1816⁷¹.

Sebbene le norme siano state concepite puntando lo sguardo al contratto di edizione a stampa, una norma di chiusura⁷² ne estende l'applicazione anche alle composizioni musicali, **senza però alcun richiamo specifico alla materia teatrale. Il problema si risolve facilmente ammettendo un'applicazione analogica dei §§. 1164, 1165 e 1166. I testi delle norme così recitano: § 1164. "Col contratto dell'edizione di un libro l'autore dà ad alcuno il diritto di stamparlo e di venderlo. L'autore con questo contratto rinuncia al diritto di dare ad altri lo stesso libro per farne l'edizione"; § 1165. "Deve l'autore consegnare l'opera secondo il contratto, e l'editore pagare all'autore la convenuta ricompensa tostochè l'opera gli sia consegnata" e § 1166. "Se l'opera non viene dall'autore consegnata nel tempo stabilito o nel modo convenuto, l'editore può recedere dal contratto, e se la consegna dell'opera si tralascia per colpa dell'autore può anche esigere indennizzazione (...)"**. E' assai semplice ipotizzare quali risultati si possano ottenere attraverso la sostituzione del termine "editore" con quello di "impresario": ci si trova infatti di fronte alla chiara modalità di azione dei rapporti autore/impresario con la commissione da parte di quest'ultimo, mediante un contratto, di un'opera all'artista e la successiva messa in scena di questa da parte del committente, che è corrispondente teatrale dell'edizione libraria.

Come già sottolineato⁷³, l'importanza dell'assenso dell'autore per l'edizione della sua opera è punto fondamentale nella legislazione austriaca; a dimostrazione di ciò, si riporta qui di seguito il testo di una circolare espressamente dedicata alla musica emessa nel 1830 (in particolare alla stampa di opere di autori non austriaci) allo scopo di fornire anche ad essi quella protezione di cui godono i nazionali:

*Circolare n.483 riguardo alle dichiarazioni dei Maestri per cessioni delle opere agli impresari*⁷⁴

"Colla lettera 19 luglio 1830, N. 2323 Ella venne avvertita sul diritto di proprietà, e sul conseguente esercizio che si acquista in questi stati per stampare o ristampare le opere musicali, che siano state regolarmente cedute ad un autore o stampatore estero ad un nazionale austriaco. Ora per superiore disposizione in aggiunta alla ricordata lettera quest'Ufficio le notifica, che d'ora in avanti non saranno valutate le prove di acquisita proprietà se oltre all'autenticità dei documenti, non risulterà, principalmente per gli spartiti di musica od altre consimili produzioni, che il maestro od autore qualunque ne abbia trasferita la proprietà nell'impresario, o che questi l'abbia lasciata invece al maestro od autore; le quali prove dovranno essere esibite a quest'Ufficio, sia che trattisi di opere acquistate all'estero, che

⁶⁹ § 1169. "I diritti dell'autore per riguardo ad una nuova edizione non passano ai suoi eredi", se costui ha già disposto del diritto sorto con la creazione dell'opera, nessun intervento, neppure sovrano, potrà far rinascere il medesimo nella sfera soggettiva dei successori mortis causa

⁷⁰ Si ricorderanno le tesi prospettate dai due francesi per affermare il fondamento del diritto nella creazione dell'opera stessa piuttosto che nel provvedimento di privilegio del Sovrano, v. la parte dedicata allo sviluppo del diritto d'autore in Francia e il paragrafo dedicato al tramonto del sistema dei privilegi

⁷¹ Il testo di tale patente firmata da Francesco I è riportato da DEZZA, Lezioni di Storia della codificazione civile, Torino 1998, 129, e viene qui di seguito trascritta: "Avendo noi determinato d'introdurre al più presto possibile nelle province del Regno Lombardo-Veneto spettanti al governo di Milano quelle leggi che riguardo al diritto comune sono dal primo di gennaio 1812 in poi in vigore nelle province tedesche della nostra monarchia, dichiariamo colle presenti che il Codice Civile generale austriaco pubblicato il primo gennaio 1811 abbia, incominciando dal primo gennaio 1816, da servire di sola ed unica norma in tutte le province spettanti al governo di Milano, in luogo di qualsivoglia altra legge o consuetudine relativa agli oggetti del detto diritto comune, e che debba avere la stessa forza di legge che gli fu attribuita mediante la nostra sovrana patente stata pubblicata il primo di giugno 1811 nelle province tedesche che in quel tempo appartenevano alla Monarchia austriaca"

⁷² § 1171. "Queste disposizioni sono pure applicabili alle carte geografiche, ai disegni topografici ed alle composizioni di musica. Le limitazioni per la ristampa sono stabilite dalle leggi politiche"

⁷³ v. par.4.3. in questo capitolo

⁷⁴ La circolare in questione è stata riportata dal ROSMINI, Legislazione e giurisprudenza sui diritti d'autore, *cit.*, 63 s.

Figure C3: Page 37 of the Appendix of GM2020

The full sentence is thus:

"Even though these rules had been originally conceived to protect new book editions, an Addendum to the Act extended the provisions to musical compositions, without any specific reference to theatrical material."

The remainder of the paragraph is dedicated to explaining how copyrights applied to musical compositions in the context of theater (including opera). I provide the translation of the original using Google Translate. I add emphasis on what I believe to be the relevant section:

The problem is easily solved by admitting an analogous application of §§ 1164, 1165 and 1166. The texts of the norms read as follows: § 1164. **“By means of a contract for the publication of a book, the author gives someone the right to print and sell it. By this contract, the author renounces the right to give the same book to others for publication”**; § 1165. “The author must deliver the work according to the contract, and the publisher must pay the author the agreed compensation as soon as the work is delivered to him” and § 1166. “If the work is not delivered by the author within the established time or in the agreed manner, the publisher can withdraw from the contract, and if the delivery of the work is omitted due to the author’s fault, he can also demand compensation (...)”. **It is very easy to imagine what results could be achieved by replacing the term “publisher” with that of “impresario”: we are in fact faced with the clear modality of action of the author/impresario relationship with the commission by the latter, through a contract, of a work from the artist and the subsequent staging of this by the client, who is the theatrical correspondent of the book edition.**

Consequently, the discussion of copyrights included in Bassi (2000) does not support the claims made in GM2020. The copyright lies with the impresario, not with the composer, and there are no legal obligations for compensation for repeat performances.